USF UNIVERSITY OF SOUTH FLORIDA SYSTEM | DIVISION OF HUMAN RESOURCES

Attendance and Leave Guide for Employees

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HOURS OF WORK

FAIR LABOR STANDARDS ACT (FLSA) PROVISIONS ON ATTENDANCE & LEAVE

The FLSA governs, but is not limited to setting a minimum hourly wage, establishing a minimum age to work, identifying compensable hours, and defining overtime and overtime compensation. These apply to USF. There are a number of sites on the web that provide information about the FLSA. Some of those are listed at the end of this section. This section of the USF Division of Human Resources (DHR) procedures covers hours of work and pertains to non-exempt Staff and Temporary employees. For non-exempt Staff employees, when the total hours worked exceed 40 in a workweek, those employees are eligible for compensation in the form of compensatory time or overtime pay. Temporary employees are not eligible for compensatory time but are eligible for overtime pay when their actual work hours exceed 40 in a workweek. At times, there are misunderstandings about what the FLSA does or does not require. As a summary, the FLSA does not require:



- vacation, holiday, severance, or sick pay;
- meal or rest periods, holidays off, or vacations;
- premium pay for weekend or holiday work;
- pay raises or fringe benefits; and
- a discharge notice, reason for discharge, or immediate payment of final wages to terminated employees.

When we think of work, we normally think of being engaged in some type of activity that as an end result accomplishes something, completes a task, etc. The activity or principal activity referred to by the FLSA may be physical, mental and/or both. We often times think only of the activities involved with the execution of the specific duties and responsibilities and work hours that have been outlined on our job descriptions as work time. However, there are some activities that may be counted as compensable hours worked for non-exempt employees outside of the normal duties and responsibilities. Some of those situations and examples are:

Breaks and Meal Period - The FLSA does not require an employer to provide time for breaks and meal periods.

- *Breaks* - It is important to remember that breaks are not mandatory. It is a privilege, not a right. At the university, non-exempt Staff and Temporary employees may be permitted one 15 minute mid-morning break and one 15 minute mid-afternoon break. Breaks cannot be accumulated, cover for late arrival to work, extended lunch hours, or be used for early departure from work. The time spent on authorized breaks must be counted as hours worked. Any exceptions to the above must be approved through DHR.

- *Meal Periods* - Even though the FLSA does not require employers to provide meal periods, it does stipulate that if one does exist, at least 30 minutes or more constitute a bona fide meal period. Meal periods are not counted as work time. Normally, employees remove themselves from the work location and are therefore not performing any duties. However, when an employee remains at the work location and while eating performs any job-related duties, other than incidental ones (such as answering a question), the time must be counted as hours

worked. At USF, a supervisor may adjust an employee's work schedule to prevent an overtime situation when an employee works during a meal period.

Suffered or Permitted Work Hours - Although there are some standard times or peak periods when overtime might be required, normally the need to work overtime is for emergency situations only. Overtime must be requested and approved prior to working the additional hours.



Work not requested but suffered or permitted is still considered hours worked. This may occur when an employee begins to work prior to the beginning of the assigned shift, during the lunch hours, or continues to work at the end of the assigned shift without approval. When the supervisor has knowledge of or has reason to believe that the employee is working additional hours that have not been requested and approved, the hours must be counted as hours worked.

Travel - Official Travel during an employee's normal working hours, whether on regular workdays or regular days off, shall be counted as hours worked. Time spent traveling outside of the employee's normal working hours is not considered work time as defined by the FLSA. Please consult the USF Attendance and Leave Administrator in DHR if there are any questions about which hours must be counted as work time during travel.

Waiting to Work - An employee who has been working required overtime (notification from the supervisor had been on a day-to-day basis) is in a compensable waiting period if at the end of their regular scheduled shift, he/she has not been notified if overtime is required for that day and he/she must "wait" for that determination. Even though he/she is not performing any duties, he/she doesn't know if overtime will be required for that day and has not been released to go home. The waiting time is considered hours of work and those hours are compensable and reported as work hours on the time sheet for that day.

Medical Attention – Time spent by an employee waiting for and receiving medical attention for a work-related injury or illness during the employee's normal scheduled shift constitutes hours worked. Therefore, such time is compensable as hours worked for overtime purposes.

WORK HOURS

Regular Hours of Operation – the University's regular hours of operation are 8:00 a.m. to 5:00 p.m., Monday through Friday. Generally, university offices and units are to be sufficiently staffed to provide full services during the hours of operation, except when the university is closed. Because certain university services are available to clients outside the regular hours of operation, this schedule may vary depending on the nature of the job and when services must be provided. For example, some offices are open earlier or later one or more days per week. Others may have assigned shifts or rotating shifts where the normal work schedule is other than 8:00 a.m. to 5:00 p.m.

Workweek - For full-time Staff and Temporary employees, 40 hours constitutes a workweek. Friday through Thursday is the workweek and corresponds to our bi-weekly pay period schedule. Administration and Faculty are expected to work the hours necessary to carry out assignments, and their work hours may exceed 40 in a workweek. Under certain



conditions, a supervisor may approve a non-standard workweek.

Temporary Hours – Hourly Temporary employees receive payment for actual hours worked and are not eligible for any paid holidays. Salaried Temporary employees (adjunct, professional, post docs, phased retirees, and graduate assistants/associates) are paid a bi-weekly amount to complete a project or assignment and may be paid if so certified.

Timesheets - The University requires all non-exempt employees (with the exception of salaried temporary employees) to fill out a timesheet each day they work. The FLSA requires that every covered employer keep records of hours worked for every non-exempt worker. The departmental attendance and leave coordinator is responsible for maintaining, auditing and record retention of all timesheets. Original copies must be kept on file until an audit has been completed.

Total daily hours should be entered to the nearest ¼ hour, round 7 minutes down, 8 minutes up.

Flextime - Flextime is a privilege. When requested by an employee, the supervisor may approve a daily work schedule that differs from that generally used by the work unit. Approval may be on an incidental basis or a permanent basis and may be rescinded if the variation in work schedule is detrimental to the operation of the work unit or hinders the providing of services. The approval should be in writing and the position description updated in Careers@USF to reflect the revised hours of work. A supervisor may elect to rotate flextime privileges among staff.

Other Situations that May Be Considered Work Hours:

On-Call - Situations are generally not considered hours of work. However, when an employee is instructed to remain at the work site because he/she is on-call, those on-call hours are considered hours of work.

Required Training - The hours spent in "class time" for training, workshops, seminars, classes, or courses that the employer requires are considered work hours.

Emergency Closing - When the university is closed, all or in part, due to a natural disaster or an unplanned sudden emergency occurrence, only those employees who perform essential services and are required to work are permitted to work. This may include University Police or other employees designated as essential personnel for the purpose of the emergency. Vice Presidents, Deans, and Directors or their designees of a college, division or department will identify those personnel that are deemed essential personnel. The time spent performing essential duties during an emergency closing are considered hours worked.

Special compensatory leave is provided to Staff and non-exempt Administration employees required to perform essential duties during an emergency closing for the hours worked during the closing.

Special compensatory leave is provided to Staff and non-exempt Administration employees required to perform essential duties for hours worked outside of their normal work schedule to prepare for or respond to a declared University emergency, as determined by the Chief Administrative Officer or designee.

Employees already on a leave of absence, with or without pay, will not be allowed to have the leave of absence changed to administrative leave to cover the absence. Employees that are not required to

work during an emergency closing are granted administrative leave in an amount equal to their appointed FTE or in an amount necessary to bring them up to their normal hours for the workweek.

Faculty, Administration and Executive Service employees, if required to work, do not receive special compensatory leave for any hours worked during the closing.

When an emergency closing occurs, updated information will be posted to the USF Home page to address specific information relating to the current closing.

Other Situations- There may be other activities under the aforementioned situations that may actually be considered as "work hours," and are therefore compensable. Some of the activities will have to be evaluated on a case-by-case basis. Remember that in determining work hours, all aspects of the situation must be reviewed.

NON-STANDARD WORKWEEK (STAFF EMPLOYEES ONLY)

When it is in the best interest of the University, employee(s), or both, a Dean or Director may approve a request for a permanent non-standard workweek for one or more Staff employees. This approval authority may not be delegated lower than the dean/director level. A request for a non-standard workweek may be made by an employee, a group of employees, or a supervisor.

The approval of a non-standard workweek should not disrupt the university's or the organizational unit's regular hours of operations or hinder the university's ability to carry out its mission or services.

Requesting and Approving a Non-Standard Workweek for Staff Employees

An employee, group of employees, or a supervisor may request a non-standard workweek by submitting a written request through appropriate management channels to the Dean or Director. In the request, include the following information:

- Employee's name, position number, and class title (or position number and class title, if position is vacant);
- The schedule of the days and hours that constitute the workweek for the employee (this is necessary to determine overtime, holiday time and pay, when applicable);
- When required by the Dean/Director:
    - justification for the request;
    - an explanation of how adequate coverage during normal hours of operation will be maintained; and
    - a description of the contingency plan to be implemented in the event of unexpected absences.

A copy of the approval will be kept in the employee's departmental attendance and leave file.

OVERTIME, COMPENSATORY LEAVE HOURS AND WORK ON A HOLIDAY

Compensation for Work During a Week with a Holiday - When an employee is required to work on a holiday, he/she is eligible to earn special compensatory leave which must be requested in the same manner as other types of leave.



- Clinical Faculty employees at USF Health are not eligible to earn special compensatory leave (delayed holiday).
- Administration employees are eligible to earn special compensatory leave for work on a holiday if approved by the appropriate VP/Dean or Director.
- Salaried Temporary employees are not hourly and their biweekly rates of pay are not impacted by paid holidays. Hourly Temporary employees do not earn, use or receive payment for compensatory time. Hourly Temporary employees are paid only for the number of hours they actually work.
- Exempt and non-exempt Staff employees receive an equivalent number of hours of special compensatory leave, as specified below. Exempt and non-exempt Staff employees earn special compensatory leave for work when the following situations occur:

  When the Staff employee is required to work on the holiday, the following equation applies: 32 hours worked + 8 hours worked on holiday + 8 hours holiday not observed = 48 hours.

  Compensation: 40 hours straight time paid + 8 hours special compensatory leave earned (delayed holiday)

  When the holiday falls on the Staff employee's regular day off and the employee does not work, he/she receives special compensatory leave equivalent to the daily number of hours that they normally work. When the actual hours of work during the workweek are 40 or less, but when added to holiday, the total weekly hours exceed 40, the following equation applies:

  35 hours worked + 8 hours holiday observed = 43 hours.

  Compensation: 40 hours straight time paid + 3 hours special compensatory leave earned

Part-time employees are granted a prorated number of hours for a holiday based on their FTE (full-time equivalency).

Overtime Work - Normally, full-time employees will be compensated for 80 hours each biweekly pay period (40 hours each workweek). If possible, supervisors are to prevent situations which require compensating Staff employees for more than 40 hours by adjusting employees' work schedules during the workweek.

When the statutory responsibilities of the university cannot be accomplished unless overtime work is authorized, overtime work may be required. Overtime work is to be approved in advance by an employee's supervisor or other appropriate authority. However, such work is considered compensable for a non-exempt employee even if not authorized by the supervisor.

Adjusting Workweek and/or Leave Use to Minimize Overtime or Additional Hours – Staff Employees – A Staff employee who works in excess of his/her normal number of hours for the workday or who works on his/her regular day off should, whenever possible, have another work day in the workweek reduced so that he/she is compensated for only 40 hours for the workweek.

The hours worked and leave used by an employee during a work week are to be adjusted by the supervisor so that compensation for hours in excess of 40 is not required, regardless of the type of

leave originally approved, including administrative leave, except for job-related disability leave, which must be compensated as hours worked for overtime purposes.

When approving an employee's request for leave, the supervisor may approve the employee's absence but should not approve a specific number of hours of leave to be used. Therefore, at the end of the workweek during which the absence occurs, the supervisor approves only the actual number of hours of leave needed to bring the employee's total number of hours of compensation up to 40, with additional hours of absence considered non-work hours.

Compensation for Overtime Worked:



- Exempt Staff Employees
- Temporary Employees
- Non-Exempt Employees

Note: Administration, Faculty and Professional/Salaried Temporary employees are not eligible to be compensated for extra hours worked. Under certain conditions, employees may be eligible for Extra Compensation when holding more than one appointment. Contact DHR, Data Center (813-974-2970) for additional information.

Temporary Employees – An hourly Temporary employee is eligible for overtime pay for all hours actually worked over 40 in a workweek.

Non-Exempt Employees – When an applicable employee's work week cannot be adjusted to prevent an overtime situation, he/she is to be compensated for all hours of work as determined by the applicable collective bargaining agreement (CBA) as follows:

- AFSCME Collective Bargaining Agreement
- PBA Collective Bargaining Agreement
- UFF/GAU Collective Bargaining Agreement

If permitted by the collective bargaining contract/agreement, each Vice President/Provost may authorize the earning of overtime compensatory leave in lieu of receipt of payment for overtime worked. This authority may be further delegated to organizational unit heads.

An employee's supervisor or other appropriate authority and the employee should discuss and agree upon the method by which the employee will be compensated prior to overtime being worked. All hours of work are to be reflected on the timesheet.

Exempt Staff Employees – When an exempt Staff employee's workweek cannot be adjusted to prevent an overtime situation, he/she is eligible to earn regular compensatory leave in an amount equivalent to the actual time worked in excess of 40 hours in the workweek, with a maximum accrual of 120 hours.

All hours of work are to be reflected on the timesheet. Refer also to the following sample equation for calculating regular compensatory leave:

Example – actual hours worked in workweek: 44 hours

40 hours of pay at the regular hourly rate of pay

Employee earns 4 hours of regular compensatory (hour for hour) leave to be taken off at a later date, but as soon as possible.

When an employee has accrued 120 hours of regular compensatory leave and is required to work additional hours over 40 due to an extraordinary work situation, the Vice President (who may delegate to the Dean/Director) may authorize payment for the regular compensatory leave earned in excess of 120.

Supervisors are encouraged to prohibit overtime work until the leave balance can be reduced.

USE, TRANSFER AND PAYMENT OF COMPENSATORY LEAVE (STAFF EMPLOYEES ONLY)

Use of Compensatory Leave – Upon a Staff employee's request and supervisor's approval, the employee may use earned compensatory leave to cover absence from work for any reason. A supervisor may require an employee to use part or all of his/her accrued compensatory leave before using annual or sick leave. With the exception of law enforcement officers, a supervisor may also require a Staff employee who has earned any type of compensatory leave to first use such leave before using accrued leave.

Refer also to Article 15.3 Special Compensatory Leave of PBA Collective Bargaining Agreement.

Transfer of Compensatory Leave

Overtime Compensatory Leave – When an employee is appointed to another position within the same organizational unit (college/division), unused overtime compensatory leave may be retained by the employee, except when he/she is appointed to a position in an exempt class after occupying a position in a non-exempt class. In such case, the employee is paid for all unused leave of this type.

Special Compensatory Leave – When an employee is appointed to another position within the same organizational unit (college/division), unused special compensatory leave may be retained by the employee, except when he/she is appointed to a position in a Faculty or Administration class. In such case, the employee is paid for all unused leave of this type.

Regular Compensatory Leave – All unused regular compensatory leave is forfeited in situations where such leave cannot be transferred or when an employee separates from the university, including for employment with another university in the State University System.

1) When a Staff employee eligible to earn regular compensatory leave is appointed to another position in an exempt Staff class, or to a position in a non-exempt Staff class, any such unused leave is retained by the employee.

2) When a Staff employee eligible to earn regular compensatory leave is appointed to a position in a Faculty or Administration class, or is appointed Temporary, any such unused leave is forfeited.

3) When the FLSA designation of a class changes from exempt to non-exempt or when the position to which an employee is assigned is reclassified from an exempt Staff to a non-exempt Staff class, such employee may retain any unused regular compensatory leave for future use. However, the employee is no longer eligible to earn additional leave of this type. If the position is reclassified to a Faculty or Administration class, all regular compensatory leave is forfeited.

CALCULATING OVERTIME COMPENSATION



The FLSA governs the calculation of hours, rates of pay and the payment of overtime compensation for covered employees.

An employee eligible to receive overtime payment will be paid the equivalent of 1.5 times his/her regular hourly rate of pay for actual time worked in excess of 40 hours in the workweek. When payment for overtime work is required, the employee's department must certify the actual hours worked in Payroll Certs in the overtime field. GEMS will automatically calculate overtime hours at 1.5 times the regular hourly rate. An employee working in two separate, non-exempt jobs (e.g., Staff and Temporary hourly) in which the actual time worked is in excess of 40 hours for both jobs in the workweek, overtime will normally be paid by the secondary (Temporary) employer.

Holiday hours and any leave hours used in a week do not count as time worked when determining if overtime is applicable. A non-exempt employee must actually work over 40 hours in a week in addition to any holiday hours or leave time used to be eligible for overtime.

An example of how overtime pay is calculated is shown below.

Example (Over 40 hours worked in workweek):

Regular hourly rate of pay: $10.00
Actual hours worked in a workweek = 47
40 hours X $10.00 per hour = $400 for a regular workweek
$10.00 x 1.5 = $15.00 overtime hourly rate
$15.00 x 7 hours worked in excess of 40 = $105.00 overtime pay

Calculating Overtime for Two or More Different Jobs (All Nonexempt)

When an employee has two or more non-exempt jobs at the university the employee is eligible for payment of overtime if the total hours worked among all jobs exceeds 40 hours in a workweek. Generally, the hours in excess of 40 are performed in secondary jobs. Therefore, the secondary employer is usually the one responsible for payment of overtime.

To compute the overtime rate for two different jobs, University Payroll determines the weighted average hourly rate per the FLSA. This calculation is done manually and separately for each week of the pay period. All hours for all jobs worked in each week are factored into the calculation. Any leave hours used by the employee and any holidays occurring during the week are factored into the calculation as paid but non-worked time. As noted above, no overtime will be paid unless the employee actually worked more than 40 hours total during the week. Payroll will apply the proper overtime rate to the appropriate number of overtime hours to be paid in each week.

PARTICIPATION ON COMMITTEES, TASK FORCES, AND ELECTED BODIES

Encouragement to Serve - USF recognizes the need and desire of Staff and Administration employees with permanent status to participate as elected officers of the Staff Senate or Administrative Advisory Council, and to encourage participation in university-wide standing councils and committees, search committees, grievance committees, task forces, teams, workgroups, and the like.

The time involved in performing these activities will be considered as "time worked" as long as it does not interfere with the accomplishment of the work, objectives or mission of the work unit.

Considerations - In making a decision to serve in this capacity, the staff member will consider the following:

- Will the staff member be able to meet the time and work commitment for university governance? It involves a time commitment for attending and preparing for meetings and performing work for the committee outside of the committee meetings. Some committee service time may be required outside of the regular work hours depending on mission of the committee.

- Will the staff member's already full workload be negatively impacted by committee service? Staff employees will not be entitled to compensatory time or overtime payments resulting from committee service. However, all time of service during regularly assigned work hours shall be considered time worked. The only exceptions to the above are members of grievance and search committee; they shall be entitled to receive overtime compensatory leave credits or overtime pay, as applicable. Administration staffs are expected to work the hours necessary to complete their job assignments and are not entitled to compensatory time or overtime because of their exempt status under the FLSA.

Prior Approval Required - Prior to agreeing to serve on a committee, the staff member will obtain approval from his/her supervisor to serve.

The supervisor will not unreasonably deny permission for such service. Service may be denied in some situations. The situations listed below are not intended to be all-inclusive but are examples.

- the staff member's performance has been documented as substandard or marginal (below satisfactory or achieves)
- the staff member has had disciplinary action within the last 12 calendar months
- the staff member has difficulty in setting and following priorities or managing time
- the staff member could not reasonably meet the expectations of the committee service considering workload or assigned projects

A supervisor may limit the number of committees on which a staff member is permitted to serve at any one time.

Advise Supervisor of Committee Meeting Schedules - It is the responsibility of the staff member, if elected or appointed, to inform the immediate supervisor of the schedule of meetings in advance so that reasonable accommodations and shifts in work assignments can be made when practicable.

In the event emergencies or peak workload periods occur at a time(s) meetings are scheduled, it is reasonable to assume that the staff member will take this into consideration and place the responsibilities of the job and work unit ahead of those of the appointment or office held, i.e., not attend the meeting. The immediate supervisor has the continuing authority and responsibility to determine staffing requirements and may refuse to allow the staff member time to attend a scheduled meeting. All university procedures for service as elected or appointed officers and appointments to standing committees, task forces, senates, and councils shall apply.

USF ATTENDANCE GUIDELINES

OVERVIEW

The University of South Florida recognizes its employees are diverse and have a wide range of personal and family obligations. Some of these circumstances can be complex and, at times, difficult, potentially impacting the employee's ability to be present and productive when at work. However, it is vital that the University and its employees strive to meet their individual responsibilities regarding attendance and use of leave benefits.

Timely and regular attendance is a condition of employment at the University of South Florida. To ensure adequate staffing, positive employee morale, and to meet expected productivity standards throughout the organization, employees will be held accountable for adhering to their established workplace schedule.

ASSOCIATED DOCUMENTS

- USF Regulation 10.203 Benefits and Hours of Work (Staff)
- USF Regulation 10.104 Benefits and Hours of Work (Faculty)
- Americans with Disabilities Act ("ADA")
- Attendance & Leave Guide for Supervisors
- Family Medical Leave Act ("FMLA")

PROCEDURES

Expectations for employees and members of the management team include:

Employees are expected to	Managers are expected to
• Communicate honestly and openly. • Share responsibility for outcomes. • Make reasonable judgments in their efforts to be at work, maintain regular attendance, and be engaged while at work. • Actively communicate in a timely manner with their supervisors about their attendance and need to request leave. • Be responsible in balancing work obligations and impact upon co-workers and internal/external customers with personal considerations in scheduling leave. • Use leave benefits in the manner for which they are intended.	• Communicate honestly and openly. • Share responsibility for outcomes. • Establish and communicate to all employees the procedures, timeframes for notification, and consequences when an employee will be late or unable to report to work. • Evaluate the relevant circumstances of each employee's situation. • Monitor their employees' attendance on a regular basis and address unsatisfactory attendance in a timely and consistent manner. • Management discretion should be exercised equitably and fairly, considering: ◦ Type, frequency, and pattern of absences from work ◦ Extenuating circumstances, i.e. hospitalization, catastrophic event, bereavement, etc. ◦ Precedent of how other similar situations were addressed ◦ Flagrant violation

Absence from Work

A. Pre-Planned Absence

Any time planned by the employee to be away from his/her regularly scheduled hours of work must be approved, at least 24 hours in advance, by the manager/supervisor and must be done in compliance with any departmental policies regarding scheduled time off.

B. Notification

If for any reason the employee is unable to report to work or is going to be late for duty, it is the employee's responsibility to notify his/her manager/supervisor through the appropriate department notification procedure. This is necessary so that arrangements for coverage can be made. Notification should be at least two (2) hours in advance of scheduled start time; however, individual departments may set a different minimum standard for notification. The notification requirement applies to each day of absence unless the manager/supervisor approves an extended absence.

Employees are expected to inform the supervisor/manager if an absence is due to a medical condition covered by the Family and Medical Leave Act ("FMLA").

An employee who fails to report to work and does not call to report the absence is considered to have an unreported absence, more commonly known as a No Call/No Show; this is the most serious absence offense. The first day of a No Call/No Show will result in a Written Reprimand. Failure to notify the manager/supervisor for three (3) consecutive days will be considered job abandonment.

Department Requirements

Departments need to assess their business needs and to develop Attendance Procedures and standards which can be fairly and consistently applied. For example, the Department may determine four (4) occurrences in a three (3) month period is excessive and will lead to disciplinary action.

Departments are required to review their proposed procedure with their respective Division of Human Resources Service Center Manager. Once approved, Departments will communicate the procedure to all existing employees as well as to all new hires.

Excluded Absences

Absences that are generally not counted as occurrences include:

- Approved absences under the FMLA
- Pre-approved absences – including sick, vacation, jury duty, military leave, and administrative leave for bereavement
- Absences approved in conjunction with a reported work-related injury

DEFINITIONS

Americans with Disabilities Act ("ADA")	Federal law through which employees may have approved absences from work based upon reasonable accommodations granted pursuant to the Act. For additional information, please contact HR-ADA-Request@usf.edu or the Division of Human Resources at (813) 974-2970.
Available for Work	Employee reports to assigned work area ready for work on time as scheduled.
Chronic Absenteeism	Occurs when there is a repeated or regular pattern of absenteeism. For example, this may include such situations as calling in sick or being tardy primarily on Mondays or Fridays or before or after holidays, and major events.
Excessive Absenteeism	Occurs when the staff member has missed work or is late to work to the extent that it (a) Exceeds the standards set by the department and/or (b) Results in or contributes to the employee's failure to perform his/her duties in a satisfactory manner Shows a pattern of repeated occurrence of absence from work in relation to a significant date. For example, the day after a pay day, holiday, Fridays, Mondays, absences when scheduled for weekend work, scheduled day off, etc.
Family and Medical Leave Act ("FMLA")	Federal law that provides job-protected leave to eligible employees. For additional information, please contact FMLA@usf.edu or DHR at (813) 974-2970
Job Abandonment	An employee who fails to report to work for three (3) consecutive days without notification is considered to have abandoned his/her position.
Leaving Early	• Leaving work with less than scheduled hours worked • When, because of illness or emergency, the employee decides to leave his/her work area after reporting for a shift, the employee must notify his/her supervisor/manager; this will be considered an attendance occurrence. If an employee is sent home due to illness (non-FMLA approved reason), the time away from work will also be considered an attendance occurrence. • Under no circumstances can breaks be added to extend meal times or to leave a scheduled shift
Medical Note	After three (3) full or partial days of absence for medical reasons (consecutive or non-consecutive days) in any 30 calendar day period, a manager/supervisor may require the employee to provide a medical certification from a licensed health care provider before any additional absence for medical reasons will be approved. **NOTE**: Unless covered by an approved FMLA request, this statement from a health care provider does not excuse the absence.

Notification	Employees are expected to follow departmental notification procedures if they: • Will be late for work • Will not be at work or • Are requesting time away from work The employee must contact personally, unless a *bona fide* emergency and is unable to call. For example, the department may require: • The employee actually speak to a member of the management team OR • A voice mail message is acceptable OR • A text message is acceptable • Notice must be provided at least two (2) hours before the start of the scheduled shift At the time of notification/call, the employee must notify his/her supervisor when an absence is due to a documented/approved leave of absence – such as Military Leave or FMLA – to ensure appropriate tracking of leave utilization and absenteeism.
Occurrence of Absence	An Occurrence is defined as: • One unscheduled and/or unapproved absence from work • Absences of two (2) or more consecutive days (i.e., illness) will be considered one (1) occurrence. • If an employee is absent one (1) day, returns for one (1) day or more, and is absent again, this would count as two (2) occurrences. • One (1) episode of tardiness 60 minutes or greater • One (1) episode of leaving early 60 minutes or greater • Two (2)episodes of tardiness and/or leaving early less than 60 minutes • Two (2) episodes of forgetting to clock in/out in one pay period. • Any absence related to the untimely renewal of licensure required by the employee's position. Any combination of the above occurrences may be counted together to determine the appropriate disciplinary action step.
Pattern	Shows a pattern of repeated occurrences of absence from work in relation to a significant date. For example, the day before or after a pay day, holiday, scheduled day off, Fridays, Mondays, absences when scheduled for weekend work, etc.
Scheduled Absence	An employee has arranged with his/her manager/supervisor at least 24 hours in advance and has received approval. Employees are **not** subject to disciplinary action for approved, scheduled absences, FMLA or ADA-approved absences.

Tardy	Arrival at the assigned work area after the scheduled start time or arrival at the work area at the scheduled time but not ready for duty, i.e., not in proper uniform, eating breakfast, etc. This includes late arrivals from breaks or meals.
Unscheduled Absence	• Missing work for one (1) or more scheduled days without receiving prior approval • Not being present to perform work, e.g., employee has reported to work but cannot be found and/or is not responding to calls/pages/texts • Not being available and/or not responding while "on call"

HOLIDAY PAY

HOLIDAY HOURS / PAY



All full-time employees in established positions are granted a maximum of twelve hours of holiday leave with pay for an observed holiday (based on the number of hours the employee is normally scheduled to work on that day). Part-time employees are granted a prorated number of hours for a holiday based on their FTE (full-time equivalency).

Use the following calculation to determine the prorated number of holiday hours granted to a part-time employee:

% of FTE appointed x 8 hrs. = prorated number of holiday hours

When the holiday falls on the employee's regular work day and the number of authorized hours of holiday time is fewer than the number of hours in the employee's work day, the employee should use accrued or earned leave to make up difference. For example, an employee appointed at .50 FTE who works four 5-hour days is entitled to a maximum of four hours of holiday pay. The remaining one hour should be covered by the employee's use of accrued or earned leave.

An employee who is on approved leave with pay when a holiday is observed or when a State Day of Mourning is declared will not be required to use his/her personal leave to cover the absence.

An employee who is granted a leave of absence without pay, and is in non-pay status for the day before a holiday, is not eligible to receive payment for the holiday or any other holiday observed while the employee is on leave.

Temporary employees are paid only for the hours of actual work and are not eligible for paid holidays. Professional, salaried Temporary, salaried Graduate Assistants/Associates covered by the collective bargaining agreement, and adjunct faculty who are working their regularly required work schedule are paid for holidays.

OBSERVANCE OF RELIGIOUS HOLY DAYS

The University reasonably accommodates the religious observances, practices, and beliefs of employees with regard to attendance and scheduling of work.

Employees wishing to observe a holy day of their religious faith on a date they are scheduled to work should request leave according to department policy and/or university procedure. Supervisors shall not unreasonably deny employees leave to observe a religious holy day as long as the leave is requested and approved according to department policy and/or university procedure.

Employees may request the use of accrued annual, compensatory, or personal holiday leave, or leave without pay, as appropriate and applicable.

Faculty who wish to observe a religious holy day should arrange for other Faculty to conduct their class or may reschedule the class. Annual leave earning faculty (12-month) should also request a day of annual leave.

Supervisors shall not arbitrarily penalize employees who are on approved absence from work because of religious observance. An employee who believes that university policy or practice does not accommodate his/her religious observance may file a grievance.

PERSONAL HOLIDAY (STAFF EMPLOYEES ONLY)

Regular full-time and part-time Staff employees are entitled to one personal holiday each fiscal year. For the purpose of determining eligibility for a personal holiday, a regular employee is one who has completed a probationary period without a break in service. A personal holiday is credited to eligible employees on July 1 each year, or on the date the employee completes his/her probationary period in any Staff class. A personal holiday is requested in the same manner as other types of leave and must be taken as a full day (cannot be taken in hourly increments) by the employee on or before the close of business on June 30 each year, or it is forfeited.

LEAVE OF ABSENCES

ANNUAL LEAVE

Eligibility - Employees, except for 9-month Faculty, Hospital Physicians (Hospitalist) and Postdoctoral Scholars (Post docs) are eligible to earn annual leave hours on a biweekly basis.

Paid Time Off (PTO) Hours for Post docs and Hospitalist Employees – are eligible to earn PTO hours according to their pay plan:

- Post docs - receive sixteen (16) days of paid time off (PTO) per calendar year.
- Hospitalists – receive 280 hours of paid time off (PTO) per calendar year if employed prior to August 1, 2016. If employee is hired on or after August 1, 2016 with an FTE of 1.0 the employee is eligible to receive a maximum of 120 hours paid time off (PTO) per calendar year. Hospitalists appointed at .50 FTE will receive a prorated allocation.

Although appointed as Temporary employees, Phased Retirees, Graduate Assistants/Associates and Post docs, earn annual, personal leave or PTO for the terms during which they are appointed. No other Temporary employees appointed to established positions are eligible for annual, personal leave or PTO.

Accrual/Earning of Hours for 12-Month Faculty, Administration and Staff Employees - all eligible full-time employees appointed to established positions accrue or earn the following hours of annual leave according to their pay plan:

- Administration and 12 month Faculty: 6.769 hours biweekly
- Administration Executive Service: 9.195 hours biweekly
- Staff:
  Up to 5 years of USF service – 4 hours biweekly
  5 to 10 years of USF service – 5 hours biweekly
  Over 10 years of USF service – 6 hours biweekly

Leave accrued is credited at the end of the pay period or the last day an employee is on the payroll, due to separation prior to the end of the pay period. Leave accrued at the end of the pay period cannot be used prior to the first day of the following pay period.

Annual leave balances are rounded to two decimal places for Staff, 12 month Faculty, Administration, and Executive Services employees.

Prorating the Accrual of Annual Leave - The accrual of annual leave is prorated when the employee is appointed for less than 1.00 FTE, or appointed 1.00 FTE, but is paid for less than 80 hours for a full pay period.

To calculate leave proration, divide the number of hours in pay status for the pay period by the number of hours in a full pay period for full-time employment, then multiply this quotient by the normal leave accrual rate for full-time employment during a pay period.

Length of Service Annual Leave Accrual Rate Increase (Staff only)

Continuous and Creditable Service - Staff employees who have continuous service (in a regular, established position) with USF are eligible to accrue annual leave at a higher rate.

The Automated Leave Tracking System (ALT) will automatically begin accruing at the higher rate at the end of the pay period when the employee meets the 5 or 10-year increment.

Staff employees, who have continuous service (in a regular, established position) with USF, are eligible to accrue annual leave at a higher rate. Staff employees who have worked at USF, left the University and returned are entitled to use their previous USF accrued time to determine eligibility at the higher rate, once that time has been verified by the USF A&L Administrator. Previous service at another State university or State agency cannot be combined with USF service for a higher leave accrual rate effective October 5, 2003.

Payment for Unused Annual Leave - an employee will be paid for unused accrued annual leave up to the allowable maximum upon transfer from an annual leave-accruing position to a non-annual leave-accruing position.

A faculty member will be paid for unused annual leave up to the allowable maximum upon transfer from an annual leave-accruing position to a non-annual leave-accruing position, unless he or she elects to

retain accrued leave balances upon such transfer for up to a maximum of two years, after which the eligible unused leave will be paid.

The rate of payment for this eligible unused leave will be at the rate of pay in effect at the time of leaving the leave-accruing position and will be paid by the department in which the faculty was employed before accepting the non-leave accruing position. The provision does not apply to a faculty member leaving an established position to accept a Temporary appointment.

Use of Annual Leave - Normally, the use of annual leave is to provide periodic vacation; however, it may be used for any other reason to cover an employee's absence from work. An employee who uses leave for less than a full hour is charged leave to the closest quarter hour, except when the leave being used is to coordinate with Workers' Compensation benefit payments, as specified in the Workers' Compensation procedure.



The use of annual leave must be requested and approved in advance, except in an emergency. Consistent with management rights, upon reasonable notice, an employee shall be required to use any part of his or her accrued annual leave at any time deemed advisable by the immediate supervisor or unit head based on the effective functioning of the unit, the efficient use of available personnel, and budget. The supervisor has the authority to disapprove as well as approve the use of annual leave. Leave may not be used prior to being accrued and credited to the employee, except when approval is granted in accordance with the provisions in advancing annual leave.

Advancing Annual Leave - Authority to approve the advancement of annual leave is delegated to the University President or designee.

Under normal circumstances, the authorization to use annual leave prior to being accrued by and credited to an employee is prohibited. However, situations may arise which warrant that annual leave be authorized to meet the business needs of the USF system. All accrued annual, compensatory leave and personal holiday must be exhausted.

A situation that may warrant approval of advanced annual leave may include a University mandatory closing. In the event of a mandatory closing, the Associate Vice President of DHR will provide instructions and guidelines.

Advanced annual leave cannot be approved for an illness, injury or personal time off. If granted advanced annual leave, an employee may not be granted approval to use additional annual leave for any reason until a positive annual leave balance is attained. If the employee leaves the University before a positive balance is attained, the value of the remaining hours are deducted from the employee's last paycheck.

The use of the advanced annual leave is manually tracked on a separate spreadsheet and maintained in the employee's leave file. The departmental attendance and leave coordinator will reduce the leave balance in ALT by entering a negative adjustment each time the annual leave is accrued until the employee has attained a positive balance.

Maximum Accruals – The maximum accrual rate for eligible employees are as follows:

- Staff: 240 hours
- Calendar-year Administration or Faculty: 352 hours
- Executive Service: 480 hours

Employees may accrue more than the maximum accrual rate for annual leave during a calendar year. However, at the close of business on December 31 of each year, the balance must be reduced to the aforementioned hours or less. All hours in excess are converted to sick leave and credited to the post 10/1/73 sick leave balance.

When an employee is off work due to a work-related injury or illness, (s)he will continue to accrue annual and sick leave hours at the rate accrued prior to the incident, whether or not the wage loss payments are supplemented by the use of accrued leave.

Post-Doctoral Fellows (Post Docs)

Postdoctoral fellows receive sixteen (16) days of paid time off (PTO) per calendar year. PTO may be used for vacation, sick or personal time off at the discretion of the employee with supervisor approval. PTO may be used in four (4) and eight (8) hour increments only. PTO is not carried over from year to year and therefore; any unused PTO at the end of the calendar year will be forfeited. Unused PTO time will not be paid out at the time of separation from employment.

Hospital Physicians (Hospitalist) – Job Code 9177

Salaried Hospital Physicians employed prior to August 1, 2016 with an FTE of 1.0 are eligible to receive a maximum of 280 hours paid time off (PTO) per calendar year.

Salaried Hospital Physicians hired on or after August 1, 2016 with an FTE of 1.0 are eligible to receive a maximum of 120 hours paid time off (PTO) per calendar year. Hospitalists appointed at .50 FTE will receive a prorated allocation.



PTO may be used for vacation, sick or personal time off with supervisor approval. Hospital Physicians are paid holidays. All PTO is requested, approved and tracked within the Automated Leave Tracking System (ALT) in GEMS Self Service. The normal workweek for each full-time employee shall be forty (40) hours. The University may establish an alternative work schedule that shall not exceed eighty (80) hours in a fourteen (14) day work cycle. PTO hours cannot be carried over from year to year, all unused PTO at the end of the calendar year is forfeited and PTO is not paid out upon separation.

A current employee appointed on a leave-accruing position moving to a Hospital Physician appointment will be paid for unused annual/sick leave (if eligible) up to the allowable maximum upon transfer. No accrued leave will be converted to PTO hours at the time of transfer. The rate of payment for this eligible unused leave will be at the rate of pay in effect at the time of leaving the leave-accruing position and will be paid by the department in which the employee was employed before accepting the non-leave accruing position.

An employee that is currently appointed on a Hospital Physician appointment and transfers to a leave accruing position will not be allowed to transfer unused PTO hours. Any unused PTO hours will be forfeited.

The following chart specifies the number of PTO hours to be credited in your first year of appointment dependent upon the month in which your appointment begins. Every year after, your PTO bank will automatically be credited with 280, 120 or 60 hours (whichever is applicable) in January to use throughout the calendar year.

Schedule of PTO Hours (Hired Prior to August 1, 2016)	
Start In:	**PTO Bank 1.0 FTE**
January	280
February	256
March	232
April	208
May	184
June	160
July	136
August	112
September	88
October	64
November	40
December	16

Schedule of PTO Hours (Hired on or after August 1, 2016)		
Start In:	**PTO Bank 1.0 FTE**	**PTO Bank .50 FTE**
January	120	60
February	110	55
March	100	50
April	90	45
May	80	40
June	70	35
July	60	30
August	50	25
September	40	20
October	30	15
November	20	10
December	10	5

Graduate Assistants/Associates

General Leave Policy- in accordance with Article 10 of the USF/GAU-UFF agreement, each employee shall be credited with five (5) days of paid leave per semester appointment. Such paid leave shall be used in increments of not less than one (1) day. For example, an employee scheduled to work six (6) hours on Monday and three (3) hours on Tuesday, who is unable to perform assigned duties on these days for any of the reasons described below, would be charged with two (2) days of leave, regardless of FTE appointment, or number of work hours scheduled. The leave provided shall not be cumulative. Note: The maximum number of leave days credited to the employee for Summer Semester (A, B, and C terms combined) is five days.

An employee may use leave when:

- Disabled or otherwise unable to perform because of injury, illness, jury duty, required U.S. military service, or when unable to so perform because the employee's presence is required elsewhere because of injury, illness, or death in the immediate family. Immediate family shall consist of mother, father, spouse, sister, brother, child, a person in a legal dependent relationship with the employee, or other relative living in the employee's household. The employee shall notify the supervisor of the inability to serve as soon as possible.

- Taking examinations for professional licensing related to the degree or qualifying examinations as required by the University.
- Traveling to conferences or other events for professional development.

Phased Retirees

All Phased Retirees who were formerly appointed to a 12-month contract whose assignment during the period of reemployment is the same or similar to that during the 12-month appointment are to be credited with 40 hours of leave with pay at the beginning of each full-time semester appointment for personal reasons unrelated to disability. For less than full-time semester appointments, the retiree will be credited with a pro-rated amount. Such leave may be used in increments of not less than four hours. If the leave is not used during the reemployment period, it is forfeited and cannot be carried forward to the next reemployment period. Any annual leave balance remaining at the end of the five-year PRP contract is forfeited.

SICK LEAVE

Accrual - Sick leave is accrued by all employees, except Temporary, and permits time off from work with pay primarily, although not exclusively, for personal and family medical reasons. There is no maximum number of hours of sick leave that may be accrued. Sick leave balances are rounded to two decimal places for all employees.

Full-time Administration, Faculty, and Staff employees accrue sick leave at the rate of 4 hours biweekly. Full-time Executive Service employees accrue sick leave at the rate of 5 hours biweekly.

Prorating the Accrual of Sick Leave - the accrual of sick leave is prorated when the employee is appointed for less than 1.00 FTE, or appointed 1.00 FTE but is paid for less than 80 hours for a full pay period.

To calculate leave proration, divide the number of hours in pay status for the pay period by the number of hours in a full pay period for full-time employment, then multiply this quotient by the normal leave accrual rate for full-time employment during a pay period.

Except in situations where an employee has sustained an on-the-job injury and is being paid less than the number of hours in a full pay period, the leave accrual must be prorated based on the number of hours in pay status.

Examples of Prorating Accruals - The following is an example of prorating leave when a full-time employee is paid less than 80 hours for a full pay period:

> *Example*- the Faculty employee is paid 64 hours for the pay period and normally accrues 4 hours of leave as a full-time employee: 64/80 = 0.80 x 4.0 = 3.20 hours accrued

The following is an example of prorating leave when a part-time employee is paid less hours than regularly scheduled during the pay period:

Example- the Staff employee is appointed .50 FTE but is paid 30 hours for the pay period: 30/80 = 0.375 x 4.0 = 1.50 hours accrued

Phased Retirees - All Phased Retirees will be credited with 40 hours of sick leave at the beginning of each full-time semester appointment or a pro-rated number of hours based on the FTE if less than full-time. It is to be used on increments of not less than 4.0 hours when the participant is unable to perform assigned duties as a result of an illness or injury to the participant or the participant's immediate family. Any sick leave not used during the reemployment period carries forward to the following reemployment period. Any sick leave balance remaining at the end of the five-year PRP contract is forfeited.

Requesting and Approving Sick Leave- The use of sick leave must be requested and approved in advance, except in an emergency. The supervisor has the authority to approve or disapprove the use of sick leave. Leave may not be used prior to it being accrued and credited to the employee.



Therefore, sick leave may not be used during the pay period in which it is accrued.

In emergencies where leave cannot be requested and approved in advance, absences should be reported as soon as possible to the employee's supervisor or designee, in the event the supervisor is unavailable. Depending on the extent of the emergency, it is acceptable for a representative to notify the supervisor on behalf of the employee, with the employee contacting the supervisor as soon thereafter as possible.

An employee who becomes ill while on approved annual leave should be allowed to use accrued sick leave to cover the period of illness. Deans/Directors should make this determination. All employees are required to submit a medical certification for the illness. This will help ensure employees within the same college/division are treated in a fair and consistent manner.

A supervisor may require a Staff employee who earned any type of compensatory leave to first use such leave before using accrued sick leave.

A supervisor may require after three (3) full or partial days of absence for medical reasons (consecutive or non-consecutive days) in any 30 calendar day period, to provide a medical certification from a health care provider before any additional absence for medical reasons will be approved.

Leave that is used for less than a full hour is charged to the closest quarter hour, except when it is being used to coordinate use of sick leave pool hours and workers' compensation.

All unused sick leave accrued prior to October 1, 1973 must be used before using sick leave accrued on or after October 1, 1973.



Purposes for Sick Leave- Sick leave may be used by applicable employees for the following reasons:

- FMLA Entitlement - to care for the employee's child following birth or placement for adoption or foster care; to care for the employee's

spouse**, child, or parent when that family member experiences a serious health condition; to care for a family member or next of kin relative injured or ill as a result of serving as an active duty service member; to attend to qualifying exigencies related to an immediate family member being on active duty; or for a serious health condition that makes the employee unable to perform his/her job even with reasonable accommodations (including on-the-job injury).

- Employee's illness/injury not covered under the FMLA entitlement.
- Illness/injury of a family member not covered under the FMLA entitlement. Family member is defined as the spouse**, domestic partner*, grandparents, parents, stepparents, brothers, sisters, children, and grandchildren of both the employee and the spouse**.
- Employee's medical appointments and medical appointments of family members not covered under the FMLA entitlement.
- Parental leave beyond the 12-week FMLA entitlement but not to exceed six months.
- Extended medical leave beyond the 12-week FMLA entitlement (includes compulsory disability leave).
- All employees are eligible to receive up to 4 days of Administrative Leave, if approved by the supervisor, for the death of an immediate family member. Additional sick days must be requested and approved by the supervisor.

*As defined in USF's Domestic Partner Health Insurance Stipend Program: an individual who shares a committed, mutually dependent relationship with a USF System employee.

**A husband or wife as defined or recognized under State law for purposes of marriage in the State where the employee resides, including common law marriage in States where it is recognized.

ADMINISTRATIVE LEAVE

Questions about Leave for Active Military Duty are answered in the section, ACTIVE MILITARY DUTY LEAVE.

Eligibility - For specific events, Administration, Executive Service, Faculty, and Staff employees may be granted administrative leave to cover absences from work. With absences for these specific purposes, an employee is not required to use any type of accrued or earned leave to cover his/her absence, unless he/she is already on an approved leave of absence with or without pay when the event occurs. Temporary employees are not entitled to administrative leave.

In no case will the approval of administrative leave cause an employee to be compensated for more than 40 hours during the workweek. Depending upon the event, administrative leave is required to be granted; may be approved by a VP, Dean, Director, or a Designee at his/her discretion; or must be requested from and approved by DHR . In the absence of BOT regulations and university practices and procedures governing discretionary approval, deans/directors should ensure that any

established internal practice for their organizational unit is applied to all employees in a fair and consistent manner.

Events for Which Administrative Leave Must be Granted – An employee must submit written request, with applicable support documentation, in order to be granted Administrative Leave. All support documentation must be kept in the department along with the leave request and maintained in the employee's leave file:

- *Death of Family Members* - The employee is required to submit appropriate documentation (obituary, funeral notice, etc.) as certification. Coverage cannot exceed four days; employee may then use a reasonable amount of sick leave at the discretion of the supervisor to cover any additional absence from work. Family member is defined as the legally married spouse**, domestic partner*, grandparents, parents, stepparents, brothers, sisters, children, and grandchildren of both the employee and the legally married spouse**.

  *As defined in USF's Domestic Partner Health Insurance Stipend Program: an individual who shares a committed, mutually dependent relationship with a USF System employee.

  **A legally married spouse as defined or recognized under State law for purposes of marriage in the State where the employee resides, including common law marriage in States where it is recognized.

- *Legal Matters*:
  - SUMMONED FOR JURY DUTY **-** A copy of the summons is required. Coverage is for all hours required, not to exceed the number of hours in the employee's regular workday. If jury duty does not require absence for the entire day, the employee shall return to work immediately upon release by the court or make other arrangements with supervisor to use leave for the remainder of day.



  - SUBPOENAED AS WITNESS (EXCLUDES PERSONAL LITIGATION OR PAID EXPERT WITNESS) **-** A copy of the subpoena is required. Coverage is for all hours required, not to exceed number of hours in the employee's regular workday.

- *Military Situations:*
  - ACTIVE OR INACTIVE DUTY FOR MILITARY TRAINING **-** A copy of the official orders is required. Coverage cannot exceed 240 working hours (30 days) in any one Federal fiscal year (10/1 - 9/30); coverage may be continuous or intermittent.
  - DISABLED VETERANS REEXAMINATION/TREATMENT – A copy of the written confirmation of the scheduled appointment(s) is required from the Department of Veterans Affairs. An employee who has been rated by the United States Department of Veterans Affairs to have incurred a military-service-connected disability and has been scheduled by the United States Department of Veterans Affairs to be reexamined or treated for the disability shall be granted administrative leave for such reexamination or treatment without loss of pay or benefits. Coverage is for all hours required, not to exceed number of hours in the employee's regular workday and not to exceed six days in one calendar year.

- EXAMINATIONS FOR MILITARY SERVICE - Copy of the official notification is required. Coverage is for all hours required, not to exceed number of hours in the employee's regular workday.
- NATIONAL GUARD STATE SERVICE - A copy of the official orders are required. Any employee of the state, who is a member of the Florida National Guard is entitled to leave of absence from his/her respective duties, without loss of pay, time, or efficiency rating, on all days during which the employee is engaged in active state duty for a named event, declared disaster, or operation pursuant to s. 250.28 or s. 252.36. However, a leave of absence without loss of pay granted under this section may not exceed 30 days for each emergency or disaster, as established by executive order.

- *Natural Disaster/Emergency Closing* **-** Administrative Leave is authorized for the entire period the university is closed for employees not required to work.

- *Official Delegation of U.S. Athletic Competition* - Official delegate involves preparing for and engaging in competition as a group leader, coach, official, or athlete. Coverage cannot exceed 30 days in one calendar year.

Events for Which Administrative Leave May be Granted (Supervisor's Discretion) - The following are events for which administrative leave may be approved at a VP, Dean, Director, or Designee's discretion, upon written request of an employee, and the support documentation required, if applicable**.** All support documentation must be kept in the department along with the leave request and maintained in the employee's leave file:

- *Voting in a Public Election* - Voting in public elections (up to two hours when the employee lives at such a distance that he/she cannot vote during the hours the polls are open or when the employee's regularly scheduled hours are equal to or exceed the hours that the polls are open).

- *Civil Disorder/Disaster* **-** Assisting with civil disorder/disaster involves performing duties resulting from civil disturbances, riots, and natural disasters, if the employee is a member of a volunteer fire department, police auxiliary or reserve, civil defense unit, other law enforcement organization, civil air patrol, or coast guard auxiliary. Coverage cannot exceed two days on any one occasion.

- *Florida Disaster Volunteer Leave* **-** Duties as a volunteer involve functioning as a certified disaster service volunteer of the American Red Cross upon the request of the American Red Cross. Coverage cannot exceed 15 working days in any fiscal year.

Events for Which Administrative Leave Must be Requested from DHR **-** The following are events for which Administrative Leave must be requested from DHR. A written request must be submitted by the VP, Dean, Director, or Designee to the AAssociate VP of DHR or Designee, along with appropriate documentation supporting the request. No action may be taken to place an employee on administrative leave for these events until approval has been received from the Associate VP of DHR or Designee. All support documentation must be kept in the department along with the leave request and maintained in the employee's leave file:

- *Employee under Investigation* - An employee under investigation may be placed on administrative leave up to the length of the investigation.

- *Between Notice of Adverse Action (Reduction in Pay Suspension, Dismissal) and Date of Action* - An employee may be placed on administrative leave between the notice of a reduction in pay, suspension, or dismissal and the effective date of the action.

- *Extraordinary Situations* - An employee may be placed on administrative leave when the employee's presence in the workplace may result in damage to property, or injury to the employee or others. The period of administrative leave is at the discretion of the Associate VP for DHR or Designee.

COMPULSORY DISABILITY LEAVE

President's Representative- For the purpose of this procedure, the President's representatives are as follows:

- For all Administration and Staff: Associate VP for DHR or designee
- For all Faculty, other than those in USF Health VP area: Provost or designee
- For Faculty in USF Health VP area: Vice President for USF Health or designee

Circumstances for Compulsory Disability Leave- When the President or his/her representative believes that an employee is unable to perform assigned duties due to illness, disability, or injury, he/she may require the employee to submit to a medical examination by a health care provider who is chosen and paid by the university, or is chosen and paid by the employee but is acceptable to the university, and will submit a report of the findings to the university.

When one or more of the following occurs, consideration of a compulsory disability leave may be appropriate:

- Employee demonstrates behavior and/or performance that leads the supervisor to believe that the employee is unable to perform his/her duties;
- Employee is reluctant or refuses to seek medical attention and insists on remaining at work; and/or
- Employee refuses to provide requested medical documentation.

Results of the Medical Examination - When the medical examination confirms that the employee is unable to perform his/her assigned duties, the employee may be placed on compulsory disability leave. When the employee's condition meets the definition of a disability under the Americans with Disabilities Act (ADA), ADA provisions are applied in determining what, if any, reasonable accommodations will be made. Contact DHR at (813) 974-2970 for additional information regarding ADA provisions.

When a compulsory disability leave is not appropriate, the supervisor notifies the employee of the results of the medical assessment and addresses any performance and/or behavioral problems, as appropriate.

When a compulsory disability leave is appropriate and approved, the supervisor or VP or designee:

- Places employee on a compulsory disability leave for a period determined by the medical assessment, not to exceed six months.
- Advises the employee they can use accrued paid leave during compulsory leave to continue the contributions to State benefits and other expenses.
- Advises employee in writing that the leave is mandatory, outlining the conditions under which he/she will be allowed to return to work, the effective date of the leave, the date he/she is expected to return to work, and a medical release to return to work.

Failure to Maintain Required Licensure or Certification - If the employee becomes unqualified for the position (e.g., loses required licensure or certification), the university is not obligated to retain him/her. If the employee fails to meet the terms and conditions of the compulsory disability leave (i.e., does not satisfactorily complete a program of rehabilitation or treatment), the university is not obligated to retain him/her.

Applicability of FMLA - Compulsory disability leave applies toward the employee's Family and Medical Leave Act (FMLA) entitlement.

Confidentiality of Medical Information - All medical records are confidential, even if the employee leaves the university, and, therefore, should be maintained separately from other employee records with limited access.

Determining Pay and Leave Status - While on a medical leave of absence without pay, the university continues to pay the employer's portion of the employee's elected health and life insurance premiums within a 12-month period. The employee, or his/her department on his/her behalf, is required to contact the Benefits Department in DHR and the Payroll Department in the University Controller's Office for information about continuing benefits.

Taking Action at the End of Compulsory Disability Leave Period- If, prior to the end or at the end of the leave period, the physician releases the employee to return to work to perform the essential functions of his/her position, the President's representative will return the employee to the same or an equivalent position.

If, based on the physician's current medical assessment, the employee is unable to be released to perform the essential functions of his/her position, depending on the employee's prognosis and the applicability of ADA provisions, the supervisor or President's representative will do one of the following:

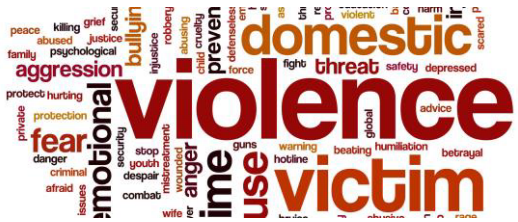
- Request that the employee return to work by a specific date and, when applicable to comply with provisions of the ADA, to identify what, if any, reasonable accommodation he/she needs to perform the essential functions of the position; or
- Offer part-time employment; or
- Approve an extension of the period of compulsory disability leave, not to exceed an additional six months; or
- Place the employee on non-compulsory leave without pay or extend such status upon written request by the employee (the total leave of absence period may not exceed 12 months); or

- Request the employee's resignation, which may include regular or disability retirement, under the provisions of the Florida Retirement System, if applicable; or

Dismiss the employee for cause, based on inability to perform assigned duties.

DOMESTIC VIOLENCE LEAVE

Pursuant with Florida statutes, the university will provide up to three days of leave from work in any twelve-month period for employees if the employee or a family or household member of the employee is the victim of domestic violence.



Domestic violence is defined as any assault, aggravated assault, battery, aggravated battery, sexual assault, sexual battery, stalking, aggravated stalking, kidnapping, false imprisonment, or any criminal offense resulting in physical injury or death of one family or household member by another family or household member. This leave entitlement took effect on July 1, 2007, and as of July 1, 2008, the law was amended to include sexual violence.

For an employee on a 1.0 FTE appointment, working 40 hours per week, the maximum leave entitlement under this procedure is 24 hours. For employees with less than 1.0 FTE appointment, the leave entitlement under this procedure will be prorated. To be eligible, an employee must have three months of USF employment.

Employees must use accrued leave (annual and/or sick leave), compensatory or personal holiday to remain in a paid status. If, however, an employee does not have sufficient accrued leave, the time allowed under this procedure will be approved without pay.

Notification and Documentation - Except in cases of imminent danger to the health or safety of the employee, or to the health or safety of a family or household member, an employee seeking leave from work should provide appropriate notice of the leave along with sufficient documentation of the act of domestic violence in advance of the leave.

If in a situation potentially meeting the requirements of Domestic Violence Leave, the employee should contact the supervisor as soon as possible. When made aware of the need for this type of leave the supervisor or other appropriate administrator should contact DHR Employee Relations (ER) for approval of this type of leave.

Acceptable documentation may take the form of copies of a restraining order(s) or other injunction documents, medical or mental health information demonstrating the provision of services (including victim services organizations), utilization of housing or legal assistance, and the like. Documentation will be reviewed and assessed on a case-by-case basis to ensure compliance with the leave's intent and administration.

Confidentiality, Coercion, and Retaliation - All documents related to the employee's leave are to be kept confidential to the extent permissible by law. Any documentation used in the request or substantiation of the leave must be forwarded to ER. No copies should be retained in the department.

Further, the university may not interfere with, restrain, or deny an attempt by an employee to exercise any rights provided under this leave entitlement. Similarly, the university may not discharge, demote, suspend, retaliate, or in any other manner discriminate against an employee for exercising his or her rights under this section.

Additional University Resources

- The Advocacy Program assists any member of the USF community who has experienced violence, abuse or trauma. Professionally certified victim services practitioners provide free and confidential services to the USF community as needed, even if the offense occurred off-campus. The Advocacy Program offers a Victim Helpline at (813) 974-5757.
- The Employee Assistance Program (EAP) is a service program designed to assist employees with personal, family or workplace concerns including crisis intervention, psychological counseling, and information/referral services. Call (800) 327-8705 to make an appointment.

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JOB RELATED DISABILITY LEAVE

All Staff, Faculty, Administration and Phased Retirees, excluding Temporary employees, who are unable to work due to a job-related injury/illness may be eligible to be approved for the use of up to 40 hours of paid disability leave if medical documentation is provided to support the absence. An employee may be approved to use job-related disability leave to cover absences during normal work hours to receive medical treatment from an authorized medical practitioner and during periods of disability as certified by an authorized physician. Job-related disability leave applies toward the employee's Family and Medical Leave Act (FMLA) entitlement.

When an employee is off work due to a work-related injury or illness, (s)he will continue to accrue annual and sick leave hours at the rate accrued prior to the incident, whether or not the wage loss payments are supplemented by the use of accrued leave.

Refer also to Workers' Compensation for additional information.

ACTIVE MILITARY DUTY LEAVE

Questions about leave for military training, veterans' reexamination, examinations for military service and National Guard state service are answered in the section, ADMINISTRATIVE LEAVE.

Overview - Faculty, Administration, and Staff employees who are ordered to active military service (not active duty training) are granted a leave of absence beginning with the date of induction. Upon learning that an employee is being recalled to active duty, it is critical that DHR is immediately notified. A military leave impacts terms and conditions of employment and staff and the DHR are available to assist departments and family members.

To be granted a military leave of absence, the university must be provided a copy of the military orders. A copy of these orders should be attached to the completed Appointment Status Form (ASF) and forwarded to the Data Center in DHR . Temporary employees may be placed on a leave of absence only through the end date of their active appointment.



For Faculty, Administration, and Staff employees, the first 30 calendar days of a military leave for active duty are with full pay and do not affect the employee's annual and/or sick leave balance(s). The remainder of the leave of absence is without pay, unless the employee elects to use accrued annual, personal holiday and/or compensatory leave (subject to the same conditions as other employees on leave without pay and consistent with USERRA) to cover financial obligations. Temporary employees are not eligible for paid leave.

For information regarding how the leave of absence may affect tenure status, the Dean's Office or the Provost's Office should be contacted.

Employees should contact the Benefits department in DHR for information regarding the continuation or cancellation of benefits plans.

The Payroll office in the University's Controller's Office should be contacted for information regarding continuation of pay and premium deductions.

Approval of Leave - The Uniformed Services Employment and Reemployment Rights Act provides protection and rights of reinstatement to employees who participate in the National Guard and Reserve. Faculty, Administration, and Staff must be approved a military leave of absence for up to 5 years of cumulative service for active military service. Temporary employees may be placed on a leave of absence through the end date of the active appointment.

Power of Attorney - When an employee is ordered to active military duty, he/she should notify his/her supervisor of the name, address, and phone number of his/her power of attorney. A power of attorney has the authority to assist with employment matters and benefit options.

Appointment and Pay - Upon being notified that an employee is being or has been recalled to active military duty, the employing department should submit an Appointment Status Form (ASF) to DHR reflecting the begin date for the military leave of absence. A copy of the military order should be attached. The first 30 calendar days of Active Military Duty Leave are with full pay and do not affect the employee's annual and/or sick leave balance(s). The remainder of the leave of absence is without pay, unless the employee elects to use accrued annual, personal holiday and/or compensatory leave (subject to the same conditions as other employees on leave without pay and consistent with USERRA) to cover financial obligations. Temporary employees are not eligible for paid leave. In the remarks section of the ASF, add a statement describing the transaction. This statement can sometimes help clarify the department's intent when submitting status forms. Any questions regarding the completion of the ASF should be directed to the Data Center in DHR .



Each pay period, certify the number of hours the employee is to be paid. Any questions regarding the certification process or the payment of premiums and deductions should be directed to the Payroll Office in the University's Controller's Office.

Attach a copy of the official military orders to the employee's department leave file.

Employee Responsibilities Summary

- Advise supervisor immediately upon receiving notice of being ordered up to active military duty and provide him/her with a copy of the written orders.
- Advise supervisor of the name, address and phone number of the power of attorney.
- Contact the Benefits department to determine the benefit plans that will be continued or cancelled.
- Advise department if accrued annual, sick, or compensatory leave is to be certified for payment each pay period.
- Request that the family designee or power of attorney keep in contact with the employing department to keep it apprised of return to work plans.
- Upon return from military leave, provide a copy of the discharge papers to the supervisor and the Benefits Office.
- Upon return, contact the Benefits department to discuss continuation of benefits.

Departmental Responsibilities Summary

- Notify DHR upon notification of the military orders.
- Notify Payroll upon notification of the military orders for calculation of military pay supplements and leave accruals.
- Notify Sponsored Research (if employee is paid from Contracts and Grants).
- Confirm and verify leave balances in the Automated Leave Tracking System (ALT) and maintain a copy of the military orders in the employee's leave file.
- Determine the number of hours that will be paid to the employee each pay period.
- Budget for the retirement contributions which may be due upon the employee's return to work.
- Each pay period, certify pay and post use of leave hours in ALT if accrued annual, sick, or compensatory leave are to be used.
- Submit an ASF to DHR any time a change occurs (i.e. initial leave, changes in pay, extension of the leave, leave due to injury/illness/disability, return to work, termination, and/or death).

Continuation or Cancellation of Benefit Plans - The employee or power of attorney must elect the benefit plans that should continue during the leave. The Benefits department should be consulted at the beginning of the military leave to discuss the continuation or cancellation of benefit plans. The employee's designee should maintain contact with the Benefit's department during the military leave in the event circumstances change and updates to coverage must be made.

The Payroll Office may be consulted for assistance with certifying pay each pay period if the employee elects to use accrued annual, sick, or compensatory leave, to ensure premiums are deducted from pay and/or for paying monthly premiums via the USF payroll website.

During the first 30 calendar days of the military leave, the employee remains in full pay status and premiums and other deductions continue to be deducted from the employee's pay checks, allowing insurances and other benefits to continue to be in force.

Following the first 30 calendar days, the employee may remain in a pay status by using accrued annual, sick, or compensatory leave intermittently each pay period to cover financial obligations, or be placed on a leave without pay. The employee or the employee's designee should consider the employee's leave balances prior to requesting the number of leave hours to be paid each pay period and the benefit plans being continued during the military leave. If the employee or designee elects to continue one or several benefits plans, the premiums may either be deducted from the employee's biweekly pay through the use of accrued leave or compensatory leave, or may be paid by submitting payment to the USF website.



Group Health and Life Insurance - If the employee remains in a pay status each pay period, the employee continues to be eligible for the employer contributions for the state group health and/or life insurance, and continues to pay the reduced premium amount. If the employee is placed on a leave of absence without pay beginning the 31st calendar day, the employee may continue the state group health and/or life insurance coverage, however, the total monthly premium (state portion as well as the employee portion) must be paid directly through the Payroll website. Upon being returned to a pay status or active reemployment, the reduced premium is reinstated.

Optional Life Insurance - The employee must elect to continue or cancel the coverage. The premiums due may be paid through payroll deduction if employee continues to receive pay or by submitting payment to the Payroll website.

State Life and Optional Life Insurance Benefits - The basic life insurance and optional life insurance both provide additional coverage for accidental death and dismemberment, at no cost. Regardless of the reason for the death, the basic and optional life insurance will pay the beneficiary. However, the additional coverage for accidental death and dismemberment is paid in the event of an accident and will not be paid if death occurs due to war or any act of war, declared or undeclared. Since it is provided at no cost, it is not possible to cancel the accidental death and dismemberment coverage and retain the basic life coverage.

An employee who cancels an insurance coverage due to being called to active duty may reenroll in that same coverage if the employee returns to work no later than ninety (90) calendar days after separation from military service, by submitting an application to the employee's agency personnel office within thirty-one (31) calendar days after returning to work. For such employees, any pre-existing condition provisions of any coverage will not apply to those persons who were insured under the employee's coverage in effect at the time the employee was called to active duty.

Flexible Spending Accounts (Reimbursement Accounts) - When the military leave of absence is longer than 30 calendar days and the employee has a medical or dependent day care flexible spending account (reimbursement account), the employee may continue participation through payroll deduction if in pay status, or paying the amounts due through the USF Payroll website. To cancel participation, the employee must contact the Benefits department. Upon reemployment, the employee may re-enroll within 31 days of the reemployment date.

Retirement - During the first 30 calendar days, retirement contributions are made to the employee's retirement account. The employer's retirement contribution continues to be paid based on the gross salary received by the employee each pay period and will cease when the employee goes into non-pay status. ORP participants should contact the Benefits department or their ORP representative if they wish to make a change to the employee's contribution rate.



No contributions are made to the employee's retirement account while the employee is in a non-pay status. Upon reemployment, the Benefits department will require a copy of the discharge papers and request that the Division of Retirement audit the employee's retirement account to for contributions and interest due. The maximum cumulative time the university is required to contribute during a military leave is five years provided the employee received an honorable discharge and was reemployed by the university.

Tax Sheltered Annuity [403(b) Plan] - If the employee remains in a full or partial pay status, the employee/designee must decide whether to continue or cancel the reduction. The employee or designee should contact the TSA company representative to discuss fund allocations.

State Deferred Compensation Plan - If the employee remains in a full or partial pay status, the employee/designee must decide whether to continue or cancel the reduction. To make a change to the contributions going to a state deferred compensation plan account, the employee or designee should contact the company representative or the State Deferred Compensation office at 1-877-299-8002.

Leave Provisions - An employee, who is called to active duty, voluntarily or involuntarily, must immediately notify the supervisor. If the employee was orally called to active duty prior to receiving official written orders, he/she should make arrangements with family, friend, or power of attorney, to send a copy of the orders to the supervisor upon receipt. A copy of the order should be maintained in the employee's leave file.

The first 30 calendar days of the military leave of absence are with full pay with no reduction to accrued leave or compensatory leave. After the 30 calendar day period the employee may use accrued annual, sick, or compensatory leave to remain in a pay status and will continue to accrue annual and/or sick leave proportionate to the number of hours in pay status.

All unused leave is retained for the employee and credited to his/her account upon return to employment. For Staff employees called to active duty who has an annual leave balance in excess of 240 hours on December 31 of each year, the excess hours are converted to the employees' sick leave accounts. For Faculty and Administration employees called to active duty who have an annual leave balance in excess of 352 hours on December 31 of each year, the excess hours are converted to the employees' sick leave account.

Members of the Sick Leave Pool may not request to use hours from the pool while on military leave. While on military leave, though, an employee may make a contribution to the Sick Leave Pool to replenish hours when notified this is a condition of continued membership in the pool.

Return to Reemployment from Active Military Duty - Upon the employee's return from the military leave, the employing department completes and submits to DHR an ASF reflecting the return

date, and certifies the correct number of pay hours for the pay period during which the employee returns. A copy of the employee's discharge papers must be attached. The employee must immediately contact the Benefits department to discuss reenrollment opportunities into benefit plans and to ensure the period of leave is properly credited to the employee's retirement account. A copy of the discharge papers may be required.

Death - If the employee dies during the military leave, the designee should immediately contact the Benefits department for assistance and to discuss benefit options that may be available to the surviving spouse, dependents, or beneficiary.

Special Provisions for Operation Enduring Freedom – Normally, the Leave for Active Military Duty procedure should be referred to when an employee is recalled to active military service. However, the Governor and Cabinet have demonstrated a strong commitment to employees serving in our Armed Forces and have adopted a resolution directing all agencies under their jurisdiction and counties, municipalities, and political subdivisions of the state to likewise implement the provisions of the reservist compensation law for their employees during Operation Enduring Freedom. The resolution advises employers to make military pay supplements and provide benefits to employees (excluding Temporary employees) who are reservists called to active duty. This document outlines additional provisions for military leave due to Operation Enduring Freedom and supplements the procedure normally used.

Appointment and Military Pay Supplement - Upon being notified that an employee is being or has been recalled to active military duty due to Operation Enduring Freedom, the employing department should submit an Appointment Status Form (ASF) to DHR reflecting the begin date for the military leave of absence. A copy of the military order should be attached.

During Operation Enduring Freedom, the employee is eligible to receive military pay supplement. Military Pay Supplement is defined as the difference between the employee's university salary and their military base pay (exclusive of allowances for quarters, rations, variable housing allowances, or other special pay). When an employee's military base pay equals or exceeds the employee's university regular rate of pay, no military pay supplement will be awarded. To ensure the proper amount of military pay supplement is to be received from the State, verification of military base pay is required. The Payroll Office must be contacted for assistance to accurately calculate the employee's pay and provide assistance with the certification of the military pay supplement. The military pay supplement ceases upon being released from active military service. The employee or his/her power of attorney is responsible for notifying the agency of the last day of active duty.

If the employee is not eligible for military pay supplement because their military base pay is equal to or exceeds his/her regular rate of pay, or if the employee's military pay supplement is insufficient to continue all premiums for benefits, the employee may continue to use intermittent leave to cover his/her deductions for state insurance-related benefits. The employee may also elect to pay the employee's portion of any deductions in advance through the USF Payroll website. Employees may contact the Payroll department for assistance. The employee or designee, who has power of attorney, should immediately contact the Benefits department for guidance and information regarding the continuation or cancellation of benefit plans. Benefits may also need a copy of the military orders if health, life and pretax reimbursement plans are canceled.

State Health and Life Insurance - For health and basic life, USF will continue to pay the state share of the premiums for that coverage. The employee will continue to be responsible for any amount that the employee had been paying.

Leave Accruals and Holiday Pay - During the period of time employees are serving in active military service due to Operation Enduring Freedom, they will continue to earn full annual, sick leave, and holiday pay in accordance with the regulations applicable to their position. If the employee is using intermittent leave, such leave may not be necessary or may be reduced during a holiday work period since the employee is receiving holiday pay.

MEDICALLY RELATED LEAVE



Some medically-related leaves of absence apply towards an employee's Family and Medical Leave Act (FMLA) entitlement. If an employee submits a written request for medically-related leave and all FMLA criteria are met, the employee will be granted an FMLA medical leave of absence of up to 12 workweeks due to the illness, disability, or injury of the employee or the employee's applicable family member.

If an employee submits a written request for medically-related leave and FMLA criteria are not met or the employee's FMLA entitlement has been exhausted, the employee may be granted, a medically-related leave of absence for up to six months, including any FMLA leave.

In order to request a non-FMLA medical leave of absence the employee must:

- Submit the Non-FMLA Healthcare Provider Certification Form stating the employee is unable to perform the assigned duties due to the medical condition to DHR , attention, Leaveadmin@usf.edu.
- Complete and submit the Non-FMLA Medical Leave of Absence Request Form to the department for approval/denial.

Prior to approval of the requested medically-related leave of absence, the employee's supervisor should consult with DHR , Attendance and Leave Administrator (for non-faculty) or the Provost's Office (for Faculty) and provide DHR with a copy of the form with signature of approval/denial to the Attendance and Leave Administrator.

In addition to using accrued sick leave while on a medically-related leave, an employee may use accrued annual, earned compensatory or personal leave (when applicable).

While on a medically-related leave of absence without pay, the university will continue to contribute the employer's portion of the employee's elected health and life insurance premiums within a 12-month period. The employee should contact Employee Benefits in DHR and the Payroll Office in the University's Controller's Office for further information concerning whether to suspend certain elected benefits or submit a personal check to meet the employee portions of elected benefit premiums.

Review of the medically-related leave of absence should be conducted prior to the approved end date of the leave. This review should take place approximately three weeks prior to the end of the leave to ensure the supervisor is prepared for the employee's:

- Return to full duty;
- Request for an accommodation (under the Americans with Disabilities Act (ADA) to perform essential functions of his or her position;
- Request for an extension of the leave of absence (at least every 12 weeks thereafter, prior to extending a leave of absence with or without pay, another review should be conducted);
- Resignation, retirement, or disability retirement, if applicable; or
- Dismissal for an inability to perform the essential functions of his or her position with or without a reasonable

All medical records will be secured as confidential, even when an employee leaves the university, and, therefore, should be maintained separately from other employee records, to the extent permissible under law.

PARENTAL LEAVE

USF Parental Leave of up to a maximum of six months is provided to employees (male or female) who become biological or adoptive parents.

Upon written request, an employee may be granted a parental leave of absence to begin no earlier than two weeks prior to the birth or placement of the child and no later than the date of birth or the date of placement. Approval of the leave of absence is delegated to the department level, provided notification is forwarded to DHR.



When an employee meets Family & Medical Leave Act (FMLA) eligibility criteria, the first 12 weeks of the employee's USF Parental Leave will be designated as FMLA leave, tracked concurrently and counted toward the employee's FMLA entitlement.

If the employee does not meet the FMLA criteria there is no requirement on the amount of time of employment or number of hours worked. All Faculty, Administration, Staff and Temporary employees are eligible.

During an approved USF Parental Leave employees must use accrued leave (sick, annual, compensatory leaves or the personal holiday) when available in order to maintain continuity of pay and benefits. If an employee exhausts the accrued leave, if eligible, additional leave may be available through the Sick Leave Pool if proper medical documentation is submitted verifying eligibility. The employee may use SLP hours for the birth of their child after delivery for 6-8 weeks (depending upon medical certification). SLP hours cannot be used for staying home to bond with the newborn.

While on a parental leave of absence, the university will continue to pay the university's contributions for the health and life insurance premiums elected at the time of the leave. Once accrued leave balances are exhausted, in order to continue coverage, the employee will be responsible for payment of the employee portion of the insurance premiums. For further benefits information contact the DHR Benefits department. For information on submitting payment for insurance premiums, contact Payroll.

FACULTY PAID PARENTAL LEAVE

Definition of Leave: No more than twice in the course of an employee's tenure at the University, the employee may request and be granted a paid parental leave for the birth or adoption of a child not to exceed one semester (for instructional faculty) or three months for non-instructional employees. No two members of the same family may request parental leave at the same time or for the same event (birth or adoption of a child).

In the spirit of providing continuity in the classroom for our students, faculty members are encouraged to work with their department Chairs and/or Deans to coordinate the specific arrangements of the leave. Faculty members may request and be granted the opportunity to apply additional accrued sick leave and/or time off without pay to the paid parental leave as provided for above.

Faculty in USF Health who receive clinical compensation will be paid in accordance with USF Health procedures for extended leave, and must have returned to their assigned clinical duties for a minimum of thirty (30) days upon their return from Paid Parental Leave to have the clinical compensation restarted. For more information on this procedures, please visit the Office of Faculty Affairs website at: http://health.usf.edu/facultyaffairs/ or contact the Office of Faculty Affairs directly at 974-5105.

Eligibility: To participate in this program, an employee must be in the United Faculty of Florida (UFF) bargaining unit or in the Faculty Pay Plan on a benefit eligible line, employed for a minimum of one (1) academic year for faculty members with instructional responsibilities or a minimum of one (1) calendar year for faculty members without instructional responsibilities, and employed on at least a 0.75 FTE line. This program does not apply to individuals on a temporary, a term limited, or a visiting faculty line. Furthermore, employees on contracts or grants shall be eligible to the extent that such program benefits are permitted by the terms of the contract or grant, the rules of the funding agency, and adequate funds are available for this purpose in the contract or grant.

Commitment to Reimburse: An employee who makes use of parental leave and who remains in University employment for at least one academic year (calendar year for non-instructional faculty) immediately following participation in the parental leave program shall have the total number of hours used deducted from the employee's sick leave and/or annual leave upon separation from the University, or upon transferring between annual leave and non-annual leave accruing contract. An employee who makes use of parental leave, but does not remain in University employment for at least one academic year (calendar year for non-instructional faculty) immediately following participation in the parental leave program may be required to reimburse the University for the liquidated equivalent of all salary paid while on parental leave.



Commitment to Return: The faculty member must agree in writing to return to University employment for at least one academic year (calendar year for non instructional faculty) following participation in parental leave or reimburse the University for salary received during the leave period.

Notice and Use with Other Leave(s): Paid parental leave shall not be granted such that it relieves the faculty member of both teaching and service assignments for more than one (1) semester. This

program does not prohibit deans or chairs from modifying duty assignments before and after the paid leave. The faculty member must request use of the paid parental leave in advance of the initiation of the parental leave, no later than three (3) months prior to the beginning of the leave, and the leave must occur no later than the academic semester immediately following the birth or adoption event. A shorter notice period may be allowed, on a case-by-case basis, for good cause and/or special circumstances, by the faculty member's supervisor. Unless approved in writing by the faculty member's supervisor, paid parental leave may not be used immediately before or after Sabbaticals or Professional Development Leave. When faculty members notify their dean or chair of their intent to participate in the program, notice will be provided to DHR to assess the faculty member's eligibility under the Family and Medical Leave Act (FMLA). If FMLA eligibility requirements are satisfied, up to twelve (12) weeks of the paid parental leave will be designated as FMLA, and tracked concurrently. Faculty members must provide documentation for the birth or adoption to DHR for the event.

Signed Agreement: The faculty member is required to sign a written agreement detailing the terms of this benefit. Participation in this benefit is contingent upon execution of the signed documentation.

Repayment: Repayment of salary received during paid parental leave shall be required in those instances where salary is paid in the absence of a signed agreement by the faculty member, or when the faculty member fails to comply with the terms of a signed agreement

Interaction with Tenure: The tenure clock will automatically stop at the onset of the approved paid parental leave (as defined under this program). Faculty may opt out by notifying the university, in writing, that they wish for the tenure clock to continue during the approved paid parental leave.

FACULTY PAID PARENTAL LEAVE GUIDELINES

Faculty Member Responsibilities: In order to apply and qualify for Paid Parental Leave as described in the Program, a faculty member must:

- Submit a completed Paid Parental Leave for Faculty Request Form to their immediate supervisor.
- Give as much notice as possible when he or she anticipates the use of paid parental leave to enable the department to appropriately plan for course coverage and/or workload concerns.
- Submit a notice to the department no later than three (3) months prior to the intended leave period. A shorter notice period may be allowed, on a case-by-case basis, for good cause and/or special circumstances, as determined by the faculty member's supervisor.
- Contact DHR regarding FMLA and the rights/obligations under FMLA and the Paid Parental Leave Program.
- Provide required supporting documentation in accordance with timelines provided by DHR .

Immediate Supervisor Responsibilities: In order to process a completed Paid Parental Leave for Faculty Request Form, an immediate supervisor will:

- Review the faculty member's submittal to ensure the intent of the leave request and to clarify the faculty member's responsibilities as specified in the document.

- Automatically suspend their tenure clock—offering the faculty member (as described on the request form) an option to continue the tenure clock during the leave, provided that this desire is indicated on the request form and that written notice is attached to the form.
- Notify DHR immediately should a faculty member on Paid Parental Leave (or a faculty member who has taken advantage of the benefit during their employment with the university) provide notice of resignation or fail to return as scheduled.
- Once the faculty member's request form is reviewed, the immediate supervisor will complete the section requesting the identification of a departmental contact and phone number and forward a signed copy to the College's dean or Campus' Academic Affairs Office as appropriate. Accompanying the signed request form, the immediate supervisor should include a simple explanation of contingency plans to address course offerings and interventions to alleviate workplace concerns, including rationale used in the request of replacement costs for adjunct personnel where indicated.

Dean's Office Responsibilities: Once the request form is completed, reviewed, and approved by the Dean's Office, a copy should be forwarded to the Campus Academic Office for further processing and record keeping.

Campus Academic Affairs Office Responsibilities: Upon review of the signed request form, a representative of the Campus Academic Affairs Office will correspond with the faculty member to ensure understanding of participating in the Paid Parental Leave Program, especially as it relates to:

- The deduction of accrued sick and annual leave (when applicable) at the end of the faculty member's employment at a hour-to-hour rate commensurate with the hours used under this Program;
- The expectation that participating faculty members will return to university employment as described on the Request Form;
- The faculty member will be expected to repay any salary paid while on Paid Parental Leave if the terms of this Program are not complied with; and
- The impact on tenure for faculty members on tenure-earning appointments with the default suspension of the tenure clock assumed, provided that written notification is not submitted with the leave request.

Once this consultation has occurred, a representative from the Campus Academic Affairs Office will submit the form to the designated authority for final signature. The Campus Academic Affairs Office representative will generate a letter for the faculty member formally designating the leave period with copies provided to DHR and the department for record keeping.

Interaction with the Family and Medical Leave Act (FMLA):



In order to provide notice of leave utility for USF-Tampa and USF Health campuses, faculty members are required to provide copies of all applicable documentation to DHR , Attn: FMLA, SVC 2172 or scan documents to FMLA@usf.edu.

For faculty members working on the USF- Sarasota/Manatee campus, please provide notice to the USF-Sarasota Human Resources Office (Attn: FMLA); B116.

For faculty members working on the USF-St. Petersburg campus, please provide notice to the USF-St. Petersburg Human Resources Office (Attn: FMLA); BAY 206.

If the faculty member is eligible for FMLA, distinct correspondence will be provided to the requesting faculty member with a copy to their supervisor and attendance and leave coordinator. Hours will be populated into the FMLA Leave Panels through the GEMS Automated Leave Tracking System, which will trigger an automated notification e-mail to the employee and his/her supervisor.

PROFESSIONAL DEVELOPMENT LEAVE

Sabbaticals and Faculty Professional Development Leaves

Sabbaticals are awarded annually by the Provost. Contact the Office of the Provost for more specific information about the program. Full-time, tenured faculty employees are eligible to apply for Sabbaticals. However, eligible faculty employees must have at least six years of full-time service at USF. The approved leave may be full time for one semester or half- time for two semesters. Employees continue to accrue annual and sick leave on a full-time basis.

Administrative Professional Development Leave: Key Concepts

Philosophy - Administration and Staff employees are eligible to be considered for professional leaves with pay for educational and/or developmental leave including research, experiential, developmental, or exchange programs.

The purpose of this leave is to increase the employee's value to the university through enhanced opportunities for professional renewal, educational travel, study, formal education, research, writing, exchange programs, or other experience of professional value to the university and the employee. An employee that requests a leave of absence for the purpose of furthering his/her education is not considered to be on educational leave with pay, but on a personal leave of absence.

During the period of professional leave with pay, the university will continue to contribute to the employee's retirement and insurance programs. All other benefits will continue during the period of approved professional leave, including the accrual of annual and sick leave proportionate to the employee's appointment prior to the approval of the leave. Funding will be internal from the employee's college, campus, division or unit.



While on approved professional development leave, the employee may continue to receive previously approved funds for travel, living expenses, and other professional development leave-related expenses, including those from the university and/or other sources, such as fellowships, contracts and grants to assist in accomplishing the purposes of this leave. Receipt of funds for these purposes shall not result in reduction of the employee's university salary; however, if financial assistance is received in the form of salary, the university shall normally reduce proportionately the amount paid in salary.

Employment unrelated to the purpose of the professional leave is governed by the provisions of all applicable laws, regulations, policies, and procedures pertaining to outside activity and conflict of interest.

Professional/educational development leave may be full-time or part-time, depending on the purpose of the leave. Normally, such a leave will not exceed six (6) months.

Delegation of Authority - The Vice President may determine the number of professional leaves in his/her area to be approved each fiscal year. This may be delegated to each dean/director for his/her respective area of responsibility. Generally, no more than one employee in a college, campus, division or unit may be approved for leave at the same time. Each vice Presidential area will be responsible for developing the application process.

Obligation Upon Return to Work - Unless a written agreement to the contrary is executed prior to participation, the following applies: Upon completion of the leave, the employee is required to return to work for twice the length of time for which the leave was approved. An employee who fails to complete the service requirement will normally return to the university the salary received during the leave. Exceptions may only be made by the Vice President. An employee who fails to spend the leave time as stated in the application shall reimburse the university salary and any other payments or benefits provided by the university during the leave. Upon completion of the leave, the employee shall provide to the Vice President or designee a brief report of the employee's accomplishments during the professional leave and how those accomplishments may be used to enhance the university, college, campus, division or unit.

Eligibility Criteria - At least three consecutive years of service with the university in the Administration and Staff pay plan, irrespective of funding source, provided the terms of a contract or grant through which an employee may be compensated allows for such leave. The university believes the completion of the project, work, or education will improve the productivity or management of the employee's unit or the University; or move the college, campus, division or unit and the university closer to achieving its specific mission or reaching its vision. The employee has not had a professional development leave for at least three years.

LEAVE APPROVAL CONSIDERATIONS

Initial Request for Leave of Absence for 12 Months or Less

When an employee requests an extended leave of absence not otherwise addressed in this procedure, it may be granted at the discretion of the supervisor and higher-level supervisors, as appropriate, for a period not to exceed 12 consecutive months. After the employee's written request is received by the supervisor, he/she will consult with higher-level supervisors, as appropriate, and approve or disapprove all or a portion of the leave requested after taking into consideration factors which may include the following:



- The reason for the request for leave and whether it is justified;
- The length of the leave requested;

- The impact of the leave on the employee's organizational unit and the university;
- Past practice of the employee's organizational unit in granting a leave of absence;
- The employee's length of service with the university and his/her performance record;
- Previous leaves of absence with and without pay requested.

Request for Leave of Absence/Extension in Excess of 12 Months

Under exceptional circumstances, an employee may request and be granted an initial leave of absence or extension of a leave of absence in excess of 12 consecutive months. Such leave must be approved at the dean/director level or above. Some situations that may warrant such an approval include:

- An illness or injury which is not terminal or permanent and from which the employee is expected to return to work within a specified period of time, as certified by his/her attending physician;
- Attainment of an undergraduate, graduate, or post-graduate degree within a specified period of time which will benefit the University;
- A personal or family hardship which is expected to be resolved within a specified period of time;
- Any activity which will directly benefit the University for a sustained period of time, and/or
- Any other personal or professional reason, as deemed appropriate.

LEAVE PAYOUT

GENERAL LEAVE PAYOUT GUIDELINES

Method of Certification

Leave payments for terminated employees are processed per the Leave Payout Procedures. Departments must complete an audit of the employee's leave balances within two weeks of separation and make any necessary adjustments by that time. No other action is required by departments unless they desire to use a different payment distribution from the normal distribution for that employee.

Method of Payment

Leave Payouts are distributed with the regular payroll unless special handling is required due to elected retirement deferrals. Leave cannot be processed with the employee's last regular hours. Payroll will make the leave payout approximately 30 days after the employee's separation date. Employees are paid for their eligible unused leave subject to its limits. Payment will be made based on the employee's regular rate of pay.

Deductions from Leave Payouts

Federal withholding, Social Security, and Medicare taxes will be withheld from leave payouts per current IRS rules. If the employee opted for an Employee optional retirement deduction from their regular bi-weekly salary payments, that deduction will be taken on the annual leave payout as well at the percentage specified.



Additionally, employees may elect to divert all or part of their leave payout to existing 403b annuity or state deferred compensation plans (some exclusions apply) by completing a Lump Sum Rollover Request form. The form may be

obtained from your Benefits Representative in your Service Center and must be submitted to Payroll within two weeks of the employee's separation date or with the DROP Annual Leave Cash-Out Form. Generally, the employee will need to meet with their Benefits Representative prior to separation from the university to discuss this option. Note that federal limits for retirement deferrals apply to this type of transaction and each individual employee's deferral limits must be calculated before the payout is made.

PAYMENT FOR UNUSED ANNUAL LEAVE

Annual leave payments are issued to employees at the time of termination and the employee has completed at least 6 months of continuous and creditable employment. Annual leave may also be paid out at the time the appointment of a faculty employee is changed from a twelve-month appointment to a nine-month appointment.

The UFF/BOT collective bargaining agreement states that, for “in-unit Faculty and Administration employees, cash out (payment) will be made for unused annual leave"...provided that a determination has been made by the President or representative that the employee was unable to reduce the unused annual leave balance prior to separation." Heads of units and supervisors serve as representatives of the President in matters of attendance and leave. As such, they may provide an opportunity for an in-unit employee to use leave prior to the effective date of the employee's separation.

Similarly, an Academic Dean or Administrative Director or a supervisor of an out-of-unit employee who is terminating may provide an opportunity for the employee to use leave prior to the effective date of separation.

Upon separation, eligible Staff, 12-month Faculty, Administration, and Executive Service employees are eligible to receive a lump-sum payment of unused annual leave not to exceed these amounts:

- Staff Employees: 240 hours (all hours in excess of 240 are forfeited); or
- Administration and 12 month Faculty: 352 hours (all hours in excess of 352 are forfeited)
- Executive Service: 480 hours (all hours in excess of 480 are forfeited)

When an active employee enrolls in the Deferred Retirement Optional Program (DROP), the employee may elect to be paid for up to the year-end maximum of their unused annual leave at the time he/she enters the program or he/she may defer payout until termination. The payment of unused annual leave under this provision will not constitute a break in service. To initiate payment of annual leave when an employee enters DROP and elects to cash out annual leave hours, follow the procedures outlined in the Leave Payout Procedures. This action will require a DROP Annual Leave Cash-Out Form.

- When the employee elects to receive the maximum year-end payment, any hours in excess of that year-end maximum are not forfeited and remain available for his/her use. The employee is not eligible for any further cash out of unused annual leave hours.
- When the employee elects to receive payment for unused annual leave hours and the total number of hours does not equal the year-end maximum for the employee's pay plan, any unused hours remaining are available for his/her use. The employee is eligible for additional cash out of unused annual leave upon separation from employment provided the two cash outs do not exceed the total hours authorized for the employee's pay plan.

PAYMENT FOR UNUSED SICK LEAVE

Eligibility for Payment



An employee with ten (10) or more years of continuous service in an established position who has not participated in the University's Early Sick Leave Payout Program and who was employed prior to January 1, 2014, shall be paid for one-fourth of all unused accrued sick leave, up to a total of 480 hours. An employee who was hired on or after January 1, 2014 or who has less than ten (10) years of continuous service in an established position at the time of separation will not be paid for any unused sick leave and such leave shall be forfeited. Payment will be made based on the employee's final hourly rate of pay.

All eligible employees will be compensated for unused sick leave in the following manner:

- One eighth (1/8) of all unused sick leave accrued prior to 10/1/73 (when applicable), plus
- One fourth (1/4) of all unused sick leave accrued after 10/1/73, not to exceed 480 hours.

In no situation will leave in excess of 480 hours be paid. An employee whose separation is the result of any of the following acts will not be paid for any unused sick leave even though the employee has completed 10 years of service:

- Is found guilty in a court of competent jurisdiction of committing, aiding, or abetting any embezzlement, theft, or bribery in connection with university employment;
- Has admitted to committing, aiding, or abetting any embezzlement, theft, or bribery in connection with State government; or
- Is found guilty by a court of competent jurisdiction of having violated any State law against or prohibiting strikes by public employees.

Temporary employees do not accrue sick leave.

Sick leave payouts are not eligible for State retirement credit.

PAYMENT FOR UNUSED SPECIAL COMPENSATORY LEAVE

Eligibility for Payment

Staff exempt, Staff non-exempt and Administration employees are eligible to receive payment for unused special compensatory leave upon separation or at any time during the employee's active employment, as determined by the practice of the organizational unit. If, at the time of termination, an employee has a balance of unused Special Compensatory Leave, the employee is entitled to receive payment at the current rate of pay, up to a maximum of 120 hours.

Administration employees are eligible to receive payment for unused special compensatory leave upon separation or at any time during the employee's active employment, as determined by the practice of the organizational unit. For additional information, refer to the USF Regulations, USF10.203, Benefits and Hours of Work.

Per the United Faculty of Florida (UFF) Collective Bargaining Agreement, any in-unit Faculty employee that has been required to perform duties on a holiday and terminates employment prior to being given time off, the employee shall be paid, upon termination, for the holiday hours worked within the previous (12) month period.

Administration and Executive Service employees, who have performed duties on a holiday and separate employment prior to being given equivalent time off, will be paid for any holiday hours worked within the previous 12-month period.

Cash Payment

Cash payment for unused special compensatory leave is made to an employee within one year of the date of accrual. Any hours earned that were not used by the employee within 12 months of their being earned should be cashed out. Payment should be made:



- Upon an employee's appointment to another organizational unit (college/division) within the university (paid by the current, not receiving unit);
- When the employee is appointed to a position in a Faculty or Administration class or is appointed to a Temporary position;
- Upon an employee's separation from the university; or
- At any other time sooner than the above situations when the Dean/Director deems it necessary and/or appropriate in accordance with the internal operating procedures of the employee's organizational unit.

If the authority to determine when cash payment is to be made is delegated below the Vice President/Provost level, such delegation is to be documented in writing with a copy to DHR .

Method of Certification

Payment for unused special compensatory leave is processed upon Payroll's receipt of the *Compensatory Leave Pay Out Form*. The form must indicate the number of hours of special compensatory leave to be paid, and it must be signed by an accountable officer. Note that if the employee separates employment from the university, the payout of compensatory leave will not require this form and the balances in ALT will be paid automatically by Payroll in accordance with the *Leave Payout Procedures*.

Deductions from Special Compensatory Leave Payouts

Special compensatory leave payouts are not eligible for State retirement credit (ORP, FRS, DROP, or FRSI).

PAYMENT FOR REGULAR AND OVERTIME COMPENSATORY LEAVE

Regular Compensatory Leave

When an employee has accrued 120 hours of regular compensatory leave and is required to work additional overtime hours due to an extraordinary work situation, the Vice President (who may delegate to the Dean/Director) may authorize payment for the regular compensatory leave earned in excess of

120 hours. The payment should be certified for payment as quickly as possible following the pay period in which the overtime hours were worked. .

When the employee separates employment, retires, or dies he/she will forfeit any unused regular compensatory leave hours.

Overtime Compensatory Leave

Non-exempt Staff employees are eligible to receive payment for unused overtime compensatory leave upon separation or at any time during the employee's active employment as determined by the practice of the organizational unit. The maximum cash out of overtime compensatory leave is not to exceed 120 hours. Departments should take steps to ensure these balances do not exceed the maximum amount of 120 hours.

Cash Payment

Cash payment for unused regular or overtime compensatory leave is made to an employee:



- Within one year of the date of accrual (e.g., any hours earned that were not used by the employee within 12 months of being earned should be cashed-out);
- Upon an employee's appointment to another organizational unit (college/division) within the university (paid by the current, not receiving unit);
- When the employee is appointed to a position in a Faculty or Administration class or is appointed to a Temporary (formerly OPS) position;
- When the employee is appointed to a position in an exempt Staff class;
- Upon an employee's separation from the university; or
- At any time prior to the above situations when the Dean/Director deems it necessary or appropriate in accordance with the internal operating procedures of the employee's organizational unit.

Complete the Overtime Cash Out section of the *Compensatory Leave Pay Out Form*. Indicate the converted hours (hours worked x 1.5) per the accumulated leave record.

It is important to indicate the actual overtime hours worked (not at 1.5 times the actual hours as they are kept on the books) because the overtime hours to be paid out will be classified as overtime in the payroll system, which automatically calculates the rate at time and a half on hours reported as overtime. If not converted back to the straight hours, the employee would be overpaid when the payout is processed.

The *Compensatory Leave Pay Out Form* is required only when Active employees are cashing out a portion or all of their accumulated overtime compensatory leave balance. For employees separating from the university, Payroll will make the leave payout automatically using the balance in ALT.

LEAVE PAYOUT PROCEDURES

For terminated employees or employees changing from position to Temporary:

- The department must complete an audit of the employee's leave balances in ALT no later than two weeks following the termination date of the employee or status change date. Any adjustments to leave balances must be entered at this time.
- Payroll will identify employees who terminated 30 days prior to the current pay period end date and will pay out the appropriate leave balances in ALT for the employee. No action is required by the department to initiate these payments.

For 12-month faculty members changing to a 9-month position (NOTE: Faculty members making such a status change have the option of electing to retain their annual leave balance for a maximum of two years. If the employee wishes to exercise this option, Payroll must be notified no later than two weeks after the status change. If the employee does not elect to retain their annual leave balance):

- The department must complete an audit of the employee's annual leave balance in ALT no later than two weeks of their conversion date. Any adjustments to the annual leave balance must be entered at this time.
- Payroll will identify employees making such a change and approximately 30 days after the conversion date, Payroll will pay out the annual leave balance in ALT for the employee. No action is required by the department to initiate this payment.

For active employees entering DROP and cashing out annual leave:

- The departmental leave coordinator must enter an annual leave negative adjustment (AL-) in ALT for the number of hours the employee is cashing out and include a message that the hours are being paid due to the employee entering DROP.
- Complete the Certification DROP Annual Leave Payout Form and forward it to Payroll for processing.

For active employees with a payout of compensatory leave:

- Complete the Certification Compensatory Leave Payout Form. Indicate the type of compensatory leave and number of hours to be paid out. Send the completed form to Payroll.

For employees who transfer to a new organizational unit:

- The department must complete an audit of the employee's leave balances in ALT no later than two weeks after their transfer date. Any adjustments to leave balances must be entered at this time.
- Complete the Certification Compensatory Leave Payout Form. Indicate the type(s) of compensatory leave and number of hours to be paid out. Send the completed form to Payroll.

For the death of an employee:

- Per existing procedures, notify Payroll immediately upon learning of an employee's death. Complete a leave audit no later than two weeks after the employee's death. The employee's beneficiaries should contact DHR Benefits, who will provide them with a Beneficiary Affidavit. Payroll will make all applicable leave payouts upon receipt of the completed Beneficiary Affidavit and a copy of the death certificate.

For faculty members who are separating employment and who previously received paid parental leave:

- The number of hours the faculty member utilized for paid parental leave, excluding any hours that were taken as accrued leave, shall be deducted from the total balance of accrued sick and/or annual leave hours that remain at the time of separation from USF. Sick leave hours shall be deducted first and if the paid parental leave hours utilized exceeds the available sick leave balance, any excess paid parental leave hours shall be deducted from the available annual leave hours, if any. Do not reduce any leave balance below zero. The USF A&L Administrator will enter in ALT the appropriate negative adjustment code (sick and possibly annual leave) with the corresponding number of negative hours and include a comment that the leave balance deduction is being made for paid parental leave at the time of separation. These steps should be completed as part of the standard leave audit done prior to the closing of the pay period following the employee's separation.

- In the event that the number of paid parental leave hours utilized exceeds the available sick and annual leave balances, The USF A&L Administrator will enter in ALT the negative adjustment code with the corresponding number of negative hours necessary to reduce the sick or annual leave balance to zero and include a comment that the leave balance deduction is being made for paid parental leave at the time of separation and that the paid parental leave exceeds the employee's available sick or annual leave balance.

SPECIAL CASES

- Employees requesting special deferrals to a retirement annuity from their annual and/or sick leave payouts must contact the USF Retirement Coordinator in advance of their last day of employment and complete a form for such special handling. The Retirement Coordinator will forward the completed form to Payroll for processing.

- The payment of unused annual and sick leave is considered a fringe benefit that shall be treated in the same manner as the salaries of the employees receiving the benefit. If the salaries are treated as a direct cost of a sponsored project, the fringe benefits related to those salaries shall also be treated as direct costs. The payment should be distributed to the USF Fringe Benefit Pool and all institutional activities in proportion to the relative amount of time or effort devoted by the employee at the time of payout. The allocation of the leave should be made across the salary sources according to the pay distribution in effect at the time of payout.

ADDITIONAL INFORMATION

SECURITY OF EMPLOYEE MEDICAL INFORMATION



The Americans with Disabilities Act (ADA), the Family and Medical Leave Act (FMLA), and Florida law require information about an employee's medical condition (physical or mental) be maintained securely by the employer. To remain compliant with this requirement, individuals who have access to this type of information should follow the procedures below to ensure its appropriate security.

Definition - Medical records, documents and information: documents or materials, hardcopy or electronic which refer to the employee's physical and/or mental conditions and/or his or her ability to work. For the purpose of this procedure, "medical" is being interpreted all-inclusively and as generically as possible.

Situations Where Medical Information is Necessary - Supervisors and other members of management, Employee Relations or the USF Attendance & Leave Administrator may require medical information to make a decision about work assignments, entitlements to FMLA, an ADA reasonable accommodation and the approval to use hours from the USF Sick Leave Pool.

The routine use of sick leave does not normally require medical documentation unless the supervisor suspects improper use of sick leave. Under this circumstance, the medical information only needs to indicate that the employee is under the health care professional's care and not able to work (or may work with some restrictions) for the designated period. Departments are to destroy any medical documents that they are not required to maintain by shredding. When you are required to maintain medical information, dispose of it in accordance with established retention requirements. (For example, ADA and FMLA have different retention periods).

Situations for which medical information is required are the following:

ALCOHOL AND DRUG TESTING - The DHR, Employee Relations Section maintains the results of alcohol and drug testing, according to Federal requirements.

AMERICANS WITH DISABILITIES ACT (ADA) - The only individuals who should have access to information pertaining to an employee's request for a reasonable accommodation under the ADA are the immediate supervisor, potentially the department head, specified representatives from the Office of Diversity, Inclusion and Equal Opportunity, and the ADA Administrator in DHR since these individuals are responsible for determining reasonable accommodations.

COMPULSORY DISABILITY LEAVE - The department head and others involved in the decision whether or not to place an employee on compulsory disability will need access to certain medical information.

FAMILY AND MEDICAL LEAVE ACT (FMLA) - Many instances of FMLA covered absences require medical documentation in the determination of leave eligibility and the statement of entitlement.

FITNESS FOR DUTY **-** The Division of Public Safety maintains the results of medical and psychological testing information of its employees functioning as law enforcement officers. The Public Safety office ensures that the submitted information is not accessible by unauthorized parties.

LEAVE DOCUMENTS **-** Maintain a hardcopy or electronic version of generated material pertaining to an employee's earning, accrual, use, transfer, or cash-out of leave which may or may not contain information about the employee's medical condition or ability to work.

RETURN TO WORK **-** When a medical release to return to work is required, for example, at the conclusion of a medical leave of absence or at the conclusion of an authorized FMLA leave, the employing department should maintain medical information consistent with the intent of this procedure.

SICK LEAVE POOL (SLP) HOURS **-** The SLP Administrator uses medical information to determine the employee's eligibility to use hours from the Sick Leave Pool. The employing department should not retain any medical information pertaining to the use of sick leave hours from the pool but, rather, should submit all pertinent information to the SLP Administrator in DHR.

WORKERS' COMPENSATION (WC) **-** The employing department should not maintain medical information pertaining to workers' compensation. All such information should be submitted to the Workers' Compensation Administrator within the Division of Environmental Health & Safety. This office retains the medical information in addition to, ensuring that copies of medical information are forwarded to the Division of Risk Management in Tallahassee. The Workers' Compensation Administrator ensures that submitted medical documentation is not accessible to unauthorized parties. When departments retain copies of Notices of Injury, they should be maintained as consistent with other medical information.

Security: How to Maintain Employee Medical Information

Case law and best practices have identified that medical documentation be secured separately from other records and personnel information.

- Only individual(s) who have a need to know about the medical condition to make a decision about Workers' Compensation, reasonable accommodation under ADA, compulsory disability leave, FMLA entitlement, use of hours from the sick leave pool or maintains documents which contain medical information may have access to the documents or materials where they are secured.

- Individuals who are not involved in making these decisions are restricted from having access to the file. Create a separate, confidential file for any medical information that is indicated as needing to be maintained.

- Discourage employees from providing written details about their medical condition in leave documents beyond the requirements needed to make appropriate decisions.

- Do not include a description of the medical condition on timesheets, leave records, or leave request forms or any other method used to request and/or evaluate leave requests. It is sufficient for an employee to simply indicate "ill", "sick", "doctor's appointment", or "medical reasons" on those documents.

NURSING MOTHER GUIDELINES



In compliance with recent changes in the FLSA, the following guidelines are being offered to support the health and well-being of employees and their infant children by providing nursing mothers with private, safe and accessible locations to express milk for their infants. Employees and supervisors should work cooperatively to create an environment that supports the working mother's decision to breastfeed and prohibits discrimination and harassment of those who exercise their rights.

A provision of the Patient Protection and Affordable Care Act (an amendment to the FLSA) allows nursing mothers for up to one year after the child's birth to take breaks to express breast milk. At a minimum, an employer is now required to provide nursing mothers:

a) a reasonable amount of break time to express milk for one year following the child's birth; and

b) a location other than a bathroom that is shielded from view and free from intrusion from coworkers and the public, where the employee may express breast milk.

An employee who wishes to avail herself of this benefit is expected to give her department reasonable notice (preferably, the nursing mother provides notice prior to returning to work) so that a schedule can be arranged and a location identified.

If an employee is regularly given paid breaks, then an employee may use the paid break time to express milk. An employee may also use unpaid meal time or unpaid break time to express milk. Break times will be made available each day to permit non-exempt (hourly paid) nursing mothers to express breast milk for up to one year following the birth of a child. Any unpaid break time used by an hourly employee will be reflected on the employee's time sheet.

Exempt (salaried) employees are expected to manage necessary breaks to express milk during the course of their day.

Employees are not allowed to work while expressing milk. The location may be the employee's office, an empty or unused office or conference room, so long as there is an electrical outlet, chair with arms, and a table. If there is a window in the room, it should be covered. It is preferable that there be a lock on the door.

If a lactation area, as identified above, is not available in close proximity to the employee's work area, the employee's dean, director, or department head should assist the supervisor in identifying and providing a private location for the employee to express milk within close proximity to the work area.

Employees are not entitled to absent themselves from their work stations for this purpose without prior approval. Employees can be required to postpone a scheduled time to express milk for a brief period of time if they cannot be spared. Time required to express breast milk includes the time required for the nursing mother to reach and return from the location identified by the supervisor for expressing milk.

EMERGENCY CLOSING FAQS



Q. Who decides if the university will close for a storm or emergency?

A. The President has the authority to determine if the university needs to close for emergency circumstances, like a hurricane. There may be times when the President will authorize that some, but not all, of USF Systems campuses will close, so please pay careful attention to which locations may remain open.

Q. Where should I go to find out if the university will close?

A. Employees may visit the main USF home page to get current emergency-related information. You may also call the emergency hotline at 800-992-4231 or visit local news stations, including WUSF (89.7 FM), for updates on closings.

Q. Who should be on campus during an emergency closing?

A. Only employees who have been identified as Essential Personnel should report to work when the campus and its business operations are officially closed. For safety and accountability, the university must know who is on campus and their locations during an emergency closing. It is critical that all non-essential personnel stay away from USF when the university is officially closed.
However, if non-essential personnel work during an emergency closing, they will be paid regular time for the hours worked.

Q. How do I know if I'm considered Essential Personnel?

A. The Vice President, Deans, and Directors or their designees of the college, division or department will identify personnel that are deemed to be essential personnel. Your supervisor will notify you if you are part of this group and are required to come to work during an emergency closing.

Q. If the university has closed for an emergency, will I get paid?

A. The following guidelines will determine if you are paid for an emergency closing:

- Special compensatory leave is provided to Staff and non-exempt Administration employees required to perform essential duties during an emergency closing for the hours worked during the closing.
- Special compensatory leave is provided to Staff and non-exempt Administration employees required to perform essential duties for hours worked outside of their normal work schedule to prepare for or respond to a declared University emergency, as determined by the Chief Administrative Officer or designee.
- Employees that are not required to work during an emergency closing are granted administrative leave in an amount equal to the number of hours scheduled to work during the closing or in an amount necessary to bring them up to their normal hours for the work week.
- Salaried Temporary employees will receive their regular pay.
- Employees already on a leave of absence, with or without pay, will not be allowed to have the leave of absence changed to administrative leave to cover the absence.
- An employee who had an unauthorized absence the day before the emergency closing will continue to remain on unauthorized leave on the day(s) in which the university was closed.

- Hourly Temporary employees will not receive paid leave time during an emergency closing, but if the workload permits it, a supervisor may adjust an employee's schedule during the affected pay period to allow the employee to work additional hours in the work week.

Q. What happens if USF is open but I can't come to work because I live in an evacuation zone or have to stay home with my children whose school was closed?

A. The university understands that circumstances like an evacuation or school closing may impact your ability to come to work during a storm situation. Although the university monitors school closings, we cannot guarantee that USF will close its business operations, even if other schools close. For extenuating circumstances such as these, you may request to use your annual leave to cover your absence.

Q. When should I return to work, and what time should I arrive?

A. The USF web site and media sources will provide you with updates on how long the university will be closed. On the day the university reopens, you should report to work at the time you would normally start your shift. If the university opens later than the start of your scheduled start time, you should report to work as soon as the university reopens.

Q. I work a 4 day work week, 10 hours each day. How many hours of administrative leave do I get for an emergency closing, 8 hours or 10 hours?

A. You would receive up to10 hours of administrative leave, which is equal to the number of hours in your regular workday, not to exceed your appointed hours in a workweek.

Q. I am designated to be on-call. Will I continue to receive on-call pay during the closing?

A. Yes, unless your supervisor advised you in writing prior to the emergency closing that you were not on-call during the closing.

Q. When I am on-call during an emergency closing, which rate do I receive?

A. If the closing is on a regular workday, then your on-call rate is the one for the workday. However, if the closing is on a holiday or the weekend, your on-call rate would be the one specified for holiday/weekend.

FACULTY PAID PARENTAL LEAVE FAQS



Q. How often may a faculty member use paid parental leave?

A. This benefit may be utilized no more than twice during a faculty member's employment with the university, regardless of the amount used (one instance not to exceed one semester or up to 19.5 contiguous weeks), and regardless of any breaks in service.

Q. Who may use the paid parental leave benefit?

A. The paid parental leave benefit is intended for any regular employee in the United Faculty of Florida (UFF) bargaining unit or enrolled in the Faculty Pay Plan, employed for a minimum of one (1) academic year for faculty members with instructional responsibilities or a minimum of one (1) calendar

year for faculty members without instructional responsibilities, and employed on at least a 0.75 FTE line. This program does not apply to individuals on a temporary, a term limited, or a visiting faculty line. Furthermore, employees on contracts or grants shall be eligible to the extent that such program benefits are permitted by the terms of the contract or grant, the rules of the funding agency, and adequate funds are available for this purpose in the contract or grant.

Q. How does a faculty member apply for paid parental leave?

A. In order to participate in this benefit a faculty member must submit a Parental Leave Request Form to his or her department chair or supervisor. The department chair should then forward the Parental Leave Request Form to his or her dean for endorsement who then forwards the request to the Academic Affairs Office. After a copy of the request has been received by the Academic Affairs Office, a representative will then contact the faculty member to answer any questions he or she may have and determine eligibility. Upon approval from the Academic Affairs Office, a copy will be forwarded to DHR to determine FMLA eligibility.

Q. If a faculty member has a multiple birth or adopts more than one child at the same time will they receive a period of paid parental leave for each child?

A. No. The paid parental leave benefit is available once per birth or adoption event, regardless of the number of children. Multiple births or adopting more than one child at one time constitutes a single event.

Q. How much notice should a faculty member give his/her department of intent to apply for paid parental leave?

A. A faculty member should give as much notice as possible when he or she anticipates the use of paid parental leave to enable the department to appropriately plan for course coverage and/or workload concerns. The faculty member must request use of the paid parental leave in advance, no later than three (3) months prior to the beginning of the leave. A shorter notice period may be allowed, on a case-by-case basis, for good cause and/or special circumstances, by the faculty member's supervisor.

Q. What happens to a faculty member's benefits while on paid parental leave?

A. While on paid parental leave the benefit coverage in which a faculty member is enrolled at the time of leave will continue, and any related employee contributions will continue to be deducted from their pay.

Q. Will an employee continue to accrue annual and sick leave while out on paid parental leave?

A. Yes. When a faculty member is on paid parental leave, he or she will remain in an active paid status which allows for the continuation of vacation and sick leave accruals when applicable.

Q. Is a faculty member obligated to return to university employment following participation in the program?

A. Yes. A faculty member must return to the university following participation in the program for at least one (1) academic year if the faculty member has instructional duties or for at least one (1) calendar year if the faculty member does not have instructional duties. Agreements to the contrary must be reduced to writing prior to participation. Return of salary received while on leave shall be required in those instances where neither of the above is satisfied.

Q. Can this benefit be used by two individuals for one birth or adoption placement?

A. No. Paid parental leave will not be granted to two (2) faculty members for the same birth or adoption.

Q. What other limitations are associated with this benefit?

A. Paid leave shall not be granted that relieves the faculty member of both teaching and service assignments for more than one (1) semester. Unless approved in writing by the faculty member's supervisor, paid parental leave may not be used immediately before or after Sabbaticals or Professional Development Leave.

Q. Can a Dean or Chair modify duty assignments before and after the paid leave?

A. Yes. A Dean or Chair may modify the faculty member's duty assignment before or after the paid leave based on departmental needs and the needs of the faculty member.

Q. Can a faculty member use this benefit and then utilize the entitlements of the Family and Medical Leave Act (FMLA)?

A. No. Paid parental leave runs concurrently with the Family and Medical Leave when faculty members meet the eligibility standards of the FMLA.

Q. Does use of parental leave affect the faculty member's leave balance?

A. The faculty member shall not be required to use accrued leave during the 19.5 contiguous weeks, or one (1) semester, of the parental leave. However, whenever the faculty member resigns, retires, or otherwise permanently terminates employment with the university, the number of hours that the faculty member has utilized for paid parental leave, excluding any hours that were taken as accrued leave, shall be deducted from the total balance of accrued sick and/or annual leave (with sick leave being deducted first) that the faculty member has remaining at the time of separation from the university. This deduction shall be performed only immediately prior to calculating any payment to be made to the faculty member for unused sick and/or annual leave pursuant to the Collective Bargaining Agreement in force and University Regulations.

Faculty in USF Health who receive clinical compensation will be paid in accordance with USF Health procedures for extended leave, and must have returned to their assigned clinical duties for a minimum of thirty (30) days upon their return from Paid Parental Leave to have the clinical compensation restarted. For more information on this procedures, please visit the Office of Faculty Affairs website at: http://health.usf.edu/facultyaffairs/ or contact the Office of Faculty Affairs directly at 974-5105.

Q. How does a department chair obtain teaching?

A. The Parental Leave Request Form should be completed by the faculty member, endorsed by the department chair and/or dean, and approved by the Academic Affairs Office. If there is teaching replacement costs associated with the approved paid parental leave of a faculty member, all arrangements will be made through the Academic Affairs Office.

Q. What if a teaching faculty member begins the paid parental leave in the middle of a semester?

A. Eligible faculty will be granted up to 19.5 contiguous weeks of paid leave or one semester (or up to three months for non-instructional faculty). Scheduling may be dependent upon the expected time of the event (birth or adoption). If the event occurs in the summer months, the faculty member would be granted paid parental leave under this program for the following fall semester. If the event occurs in the middle of the spring or fall semester, the faculty member may choose to use accrued sick, vacation, and/or unpaid leave to finish out the semester and then take the following semester as their paid parental leave (as provided under this program). Eligible faculty should work very closely with their Chair or Dean for appropriate scheduling that will ensure minimal disruption to the classroom with a continuation of instructional objectives.

Q. How will leave usage be tracked?

A. All paid parental leave will be tracked in ALT by the USF Attendance & Leave Administrator. All FMLA leave will be tracked by the departmental leave coordinator.

Q. If the faculty member is part-time, is the paid parental leave pro-rated?

A. Yes. Paid parental leave will be paid proportionate to the full time equivalency (FTE) assigned to the faculty member. Faculty members eligible to participate in this program must be employed on a 0.75 FTE or greater appointment.

Q. Are nine-month faculty members eligible for the paid parental leave over the summer?

A. No. Nine-month faculty members are not required to hold a summer appointment, therefore, will not be eligible for paid parental leave during the summer. However, in the event that a faculty member on a 9-month contract gives birth or adopts during the summer the paid parental leave may be taken in the subsequent fall semester provided that prior notice is submitted to their Academic Chair or Dean as appropriate.

Q. Does the tenure clock stop if a faculty member is on paid parental leave?

A. Yes. When a faculty member uses this benefit, the tenure clock automatically stops during his or her paid parental leave. However, faculty may choose to opt out by notifying the Academic Affairs Office, in writing, that they wish for the tenure clock to continue during the approved paid parental leave.

Q. Whom should I contact with any questions I may have about paid parental leave?

A. For more information about paid parental leave, please contact your campus' Academic Affairs Office.